

Section 16.

SCHEDULE.**MINOR AND CONSEQUENTIAL AMENDMENTS.**

Sections of Poor
Law (Scotland)
Act, 1845,
to be amended.

Amendment.

- Section 55 - The words from "inquire into" to "division of a parish, and" and the proviso to the section shall be omitted.
- Section 70 - The words "in accordance with any regulations made by the Department of Health for Scotland under the Poor Law (Scotland) Act, 1934" shall be inserted after the words "such applications, shall", and the word "interim", and the words from "until the parish or combination" to "determined or", shall be omitted.

CHAPTER 53.

An Act to consolidate certain enactments relating
to County Courts. [31st July 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.**CONSTITUTION AND ADMINISTRATION.***County Courts and Districts.*

County
courts to be
held for
districts.

1.—(1) For the purposes of this Act, England (excluding the City of London) shall be divided into districts, and a court shall be held under this Act for each of the said districts at one or more places therein, and throughout the whole of each district the court so held for the district shall have such jurisdiction and

powers as are conferred by this Act and any other enactment for the time being in force.

PART I.
—*cont.*

(2) Every court so held shall be called a county court and shall be a court of record and shall have a seal.

2.—(1) Subject to any alterations made in pursuance of this Act, county courts shall continue to be held for the districts and at the places and by the names appointed at the commencement of this Act under the enactments repealed by this Act. Delimita-
tion of dis-
tricts.

(2) The Lord Chancellor may from time to time by order—

- (a) alter the number and boundaries of districts and the places at which courts are to be held;
- (b) discontinue the holding of any court, consolidate any two or more districts, or divide any district;
- (c) specify the name under which, and the places in which, a court is to be held in any district:

Provided that no order shall be made under this subsection with respect to a Duchy of Lancaster district except with the consent of the Chancellor of that Duchy.

(3) Any order made under this section for the discontinuance of the holding of any court may make provision with respect to proceedings commenced in that court before the order comes into operation.

(4) Any order made under this section may be varied or revoked by a subsequent order made thereunder.

3.—(1) In this Act the expression “Duchy of Lancaster district” means a district wholly or partly within that Duchy, being a district the judge of which is not judge of any other district wholly outside that Duchy, or, in a case where there is more than one judge of the district, being a district no judge of which is judge of any other district wholly outside that Duchy: Definition
of Duchy of
Lancaster
districts.

Provided that the Lord Chancellor may by order provide that a district adjacent to the said Duchy shall be treated for the purpose of this subsection as if it were wholly or partly within that Duchy.

(2) The Lord Chancellor may, with the consent of the Chancellor of the said Duchy, revoke any order made under this section.

PART I.

—*cont.*

Appoint-
ment of
judges for
districts.

Judges.

4.—(1) There shall be at least one judge for each district, and the Lord Chancellor shall from time to time appoint to be judges such number of fit persons as is necessary :

Provided that—

- (a) when the judge of a Duchy of Lancaster district ceases to be the judge thereof, whether by reason of his vacating office or by reason of any alteration in the distribution of the districts among the judges made under subsection (4) of this section, the appointment of his successor shall, unless it is made under the said subsection (4), be made by the Chancellor of that Duchy and not by the Lord Chancellor; and
- (b) the number of judges shall not at any time exceed sixty.

(2) The distribution of the districts among the judges, as existing at the commencement of this Act, shall continue, subject to any alterations made under this section.

(3) The Lord Chancellor may from time to time direct that there shall be two judges for a district, and may make such regulations as to their respective sittings, or otherwise as to the division of their duties, as he thinks fit, and each of the judges when acting in pursuance of any such direction shall have all such powers as he would have had if he had been sole judge for the district.

(4) The Lord Chancellor may from time to time alter the distribution of the districts among the judges, and for that purpose may—

- (a) direct that any judge shall cease to be the judge of any district, or shall be transferred from all or any of the districts for which he is judge to any other district;
- (b) appoint any judge to be judge for any district in addition to the district for which he is already judge;
- (c) direct that any judge shall sit as an additional judge in any district.

(5) The Lord Chancellor shall not exercise his powers under either of the last two foregoing subsections with respect to a Duchy of Lancaster district except with the consent of the Chancellor of that Duchy.

PART I.
—*cont.*

(6) Any judge shall be capable of acting for any other judge within or without any district for which that other judge has been appointed.

5.—(1) No person shall be qualified to be appointed a judge unless he is a barrister-at-law of at least seven years' standing. Qualifications of judges.

(2) Before appointing any person to be a judge, the Lord Chancellor or the Chancellor of the Duchy of Lancaster, as the case may be, shall take steps to satisfy himself that the health of that person is satisfactory.

6. No judge, so long as he holds office as such, shall— Disqualifications of judges.

(a) be capable of being elected, or of sitting as, a member of the House of Commons; or

(b) practise at the bar, or be directly or indirectly concerned as a conveyancer, notary public or solicitor; or

(c) act as arbitrator or referee for any remuneration to himself.

7.—(1) The Lord Chancellor or, in the case of a judge of a Duchy of Lancaster district, the Chancellor of that Duchy, may, if he thinks fit, remove a judge for inability or misbehaviour. Removal and retirement of judges.

(2) A judge shall vacate his office at the end of the completed year of service in the course of which he attains the age of seventy-two years:

Provided that where the Lord Chancellor considers it desirable in the public interest to retain any judge in office after that judge attains the said age, he may from time to time authorise the continuance of that judge in office up to such later age (not exceeding seventy-five years) as he thinks fit.

8.—(1) There shall be paid to every judge a salary of one thousand five hundred pounds a year. Salaries and allowances of judges.

(2) Every salary payable as aforesaid shall—

(a) be charged on and paid out of the Consolidated Fund or the growing produce thereof; and

PART I.
—*cont.*

- (b) begin from the date of appointment and accrue due from day to day; and
- (c) be payable at such intervals not exceeding three months as the Treasury may from time to time determine.

(3) The Lord Chancellor may allow to any judge such sum as the Lord Chancellor in each case, with the approval of the Treasury, thinks reasonable for the purpose of defraying the travelling expenses of the judge, regard being had to the size and circumstances of the district for which he is judge or in which he is directed under this Act to sit as judge.

Pensions of
judges.

9.—(1) The Lord Chancellor may from time to time recommend to the Treasury that there shall be paid to any judge an annual sum by way of pension calculated in accordance with the provisions of Part I of the First Schedule to this Act—

- (a) if his office is vacated in pursuance of subsection (2) of section seven of this Act; or
- (b) if the Lord Chancellor is satisfied by means of a medical certificate that, by reason of infirmity of mind or body, he is incapable of discharging the duties of his office, and that the incapacity is likely to be permanent; or
- (c) if he retires after fifteen years' service, and at the time of retirement has attained the age of sixty-five years.

(2) A person to whom a pension has been granted under this section before he has attained the age of seventy-two years in consequence of such incapacity as aforesaid shall, until he has attained that age, be liable to be called upon by the Lord Chancellor to resume the duties of a judge of county courts with the salary attached thereto, and, if (being in a competent state of health) he declines when so called upon to resume those duties, or declines or neglects to execute those duties satisfactorily, he shall forfeit his right to the pension so granted to him.

(3) Whenever a person has resumed his duties as aforesaid, the payment of the pension granted to him shall be suspended during the period of his resumed service, but at the end of that period the pension shall again be payable and be recalculated in accordance

with the provisions of Part I of the said First Schedule, and for that purpose the period of his resumed service shall be added to the period of his former service.

PART I.
—*cont.*

(4) The decision of the Treasury shall be final on any question arising as to—

- (a) the application of any of the provisions of this section to any person; or
- (b) the amount of any pension under this section; or
- (c) the reckoning of any service for the purpose of calculating such a pension.

(5) Any pension under this section shall be charged on and paid out of the Consolidated Fund or the growing produce thereof, and shall be paid quarterly or otherwise in every year as the Treasury may determine.

10. His Majesty may include, in any commission of the peace for any borough, city, county, riding, or division of a county where a county court is held, the judge for the time being of that court, and thereupon every person duly appointed to be the judge of that court shall (whether he has ceased to hold office as such or not) be deemed to be included in the commission as if he had been personally named therein.

Inclusion of
judges in
commis-
sions of the
peace.

Deputy Judges.

11.—(1) In the event of the illness or unavoidable absence of a judge, it shall be lawful for him to appoint a person to act as his deputy during the illness or absence:

Appoint-
ment of
deputy
judges.

Provided that—

- (a) on the making of any such appointment, notice of the fact and of the name of the deputy shall be forthwith given to the Lord Chancellor; and
- (b) no deputy so appointed shall be entitled to act for more than fourteen days at any time, except with the approval of the Lord Chancellor; and
- (c) if the judge is unable to make any such appointment, the Lord Chancellor may make it.

PART I.
—cont.

(2) It shall also be lawful for a judge, with the approval of the Lord Chancellor or, in the case of a judge of a Duchy of Lancaster district, with the approval of the Chancellor of that Duchy, to appoint a person to act as his deputy for any period or periods not exceeding in the aggregate two months in any consecutive period of twelve months.

(3) Where, in the absence of a judge, a person appointed to act as his deputy is by reason of illness or otherwise incapable of performing his duties as deputy, the Lord Chancellor may appoint another person to act as deputy of that judge.

(4) When a judge vacates his office from any cause whatsoever and no deputy has been appointed, the Lord Chancellor or, in the case of a judge of a Duchy of Lancaster district, the Chancellor of that Duchy, may appoint a deputy for any period not exceeding three months if the office so long remains vacant.

(5) A deputy judge may be appointed to act for a judge in all or any of the districts for which the judge was appointed, or at all or any of the places at which the court for any such district is held.

Qualifica-
tions of
deputy
judges and
right to
practise.

12.—(1) No person shall be qualified to be appointed to act as deputy of a judge unless he—

(a) has previously held the office of judge; or

(b) is a barrister-at-law of at least seven years' standing.

(2) No person appointed to act as the deputy of a judge (other than the judge of the Westminster County Court of Middlesex) shall, during the period for which he so acts or is entitled so to act, practise as a barrister in any county court or other court within the district in which he so acts or is entitled so to act.

Removal of
deputy
judges.

13. The Lord Chancellor, or, in the case of a deputy of a judge of a Duchy of Lancaster district (other than a deputy appointed by the Lord Chancellor), the Chancellor of that Duchy, may, if he thinks fit, remove a deputy judge for inability or misbehaviour.

Remunera-
tion of
deputy
judges.

14.—(1) Where a deputy has been appointed in the case of the illness of any judge, the Lord Chancellor may, with the approval of the Treasury, allow the deputy such remuneration as he thinks fit.

(2) Every deputy who is—

PART I.
—cont.

- (a) appointed to act for a judge who subsequently, during the period of the appointment, vacates his office from any cause whatsoever; or
- (b) appointed under subsection (4) of section eleven of this Act to act during a vacancy in the office of a judge;

shall receive in respect of the period for which he acts as deputy during the vacancy such remuneration as the Lord Chancellor may, with the approval of the Treasury, in any case determine.

15.—(1) Every deputy judge shall, during the period for which he is appointed, have all the powers and privileges, and perform all the duties of the judge for whom he is appointed to act. Powers of deputy judges.

(2) Where the hearing of any proceedings duly commenced before a deputy judge is adjourned, or judgment is reserved therein, the deputy judge shall, notwithstanding that before the hearing is resumed or judgment is delivered the period of his appointment expires or a successor is appointed to the judge for whom he was acting as deputy, have power to resume the hearing and determine the proceedings, or to deliver as the judgment of the court the judgment which he has reserved, as the case may be.

(3) The appointment of a deputy of a judge shall not be avoided by the vacation of office by that judge from any cause whatsoever, and the acts of the deputy done thereafter shall be as valid as if the judge had not vacated office, and the deputy shall continue to act in every court to which he was appointed until—

- (a) the Lord Chancellor, or, in the case of a deputy of a judge for a Duchy of Lancaster district (not being a deputy appointed by the Lord Chancellor), the Chancellor of that Duchy, otherwise orders; or
- (b) a successor to the judge is appointed.

Registrars.

16.—(1) Subject to the provisions of this section, there shall be a registrar for each district, who shall be appointed by the Lord Chancellor. Appoint-ment of registrars.

PART I.
—*cont.*

(2) The Lord Chancellor may, if he thinks fit, appoint a person to be registrar for two or more districts.

(3) The Lord Chancellor may, if he thinks fit, in the case of a populous district, appoint two persons to execute jointly the office of registrar for the district and may, in any case where joint registrars are appointed, give directions with respect to the division between them of the duties of the office, and may, as he thinks fit, on the death, resignation or removal of a joint registrar, either appoint another person to be joint registrar in his place or give directions that the continuing registrar shall act as sole registrar.

Whole-time
registrars.

17. If in any case the Lord Chancellor thinks it expedient so to do, having regard to the amount of business to be performed by any registrar in pursuance of this Act and to the amount of business (if any) to be performed by him as district registrar of the High Court, he may, with the concurrence of the Treasury, direct that that registrar shall not directly or indirectly engage in practice as a solicitor or carry on any employment of such a nature as will, in the opinion of the Lord Chancellor, prevent him from properly performing his duties as registrar.

Qualifica-
tions of
registrars.

18.—(1) No person shall be qualified to be appointed a registrar unless he is a solicitor of at least seven years' standing.

(2) The Lord Chancellor shall, before giving any direction under which a person will on appointment as registrar be, or under which a person holding the office of registrar will become, a whole-time registrar, take steps to satisfy himself that the health of the person concerned is satisfactory.

(3) Nothing in this section shall disqualify any registrar appointed before the fourteenth day of July, nineteen hundred and twenty-four, from continuing to hold his office.

Removal
and retire-
ment of
registrars
and notice
of vacancies.

19.—(1) The Lord Chancellor may, if he thinks fit, remove a registrar from his office.

(2) A whole-time registrar shall vacate his office at the end of the completed year of service in the course of which he attains the age of seventy-two years :

Provided that, where the Lord Chancellor considers it desirable in the public interest to retain any registrar in office after that registrar attains the said age, he may, with the approval of the Treasury, from time to time authorise the continuance of that registrar in office up to such later age, not exceeding seventy-five years, as he thinks fit.

PART I.
—cont.

(3) Notice of a vacancy occurring in the office of registrar for a district shall be forthwith given to the Lord Chancellor by the judge for that district.

20.—(1) Every registrar shall be paid such salary, to be either exclusive or inclusive of the remuneration of any officers of the court and of any other expenses of his office, as the Lord Chancellor may from time to time, with the consent of the Treasury, direct. Salary of registrars.

(2) Where the salary is inclusive of any such remuneration or expenses as aforesaid, the Lord Chancellor may, if he thinks fit and subject to the consent of the Treasury, specify what part of the salary is applicable to the payment of the said remuneration or expenses.

21.—(1) The provisions of the Superannuation Acts shall apply to whole-time registrars subject to the modifications specified in subsections (2), (3), (4) and (5) of this section: Pensions of whole-time registrars.

Provided that, if a whole-time registrar who was, immediately before his appointment as such, an assistant registrar or a civil servant, gives notice, in such form and within such period after his appointment as may be prescribed by order of the Lord Chancellor—

- (a) in the case of an assistant registrar, of his desire to continue subject to the provisions of this Act relating to the pensions of persons in court service; or
- (b) in the case of a civil servant, of his desire to continue subject to the statutory provisions relating to the pensions of civil servants;

he shall, for the purposes of pension, be deemed not to be a whole-time registrar but to be a person employed in court service or a civil servant, as the case may be.

PART I.
—*cont.*

(2) The superannuation allowance on retirement shall be in accordance with the provisions of Part II of the First Schedule to this Act instead of in accordance with the provisions of the Superannuation Acts.

9 Edw. 7.
c. 10.
4 & 5 Geo. 5.
c. 86.

(3) The following provisions of the Superannuation Act, 1909, shall not apply, that is to say, section two (as amended by section two of the Superannuation Act, 1914), section three and subsection (2) of section six.

22 Vict.
c. 26.

(4) Section ten of the Superannuation Act, 1859, shall not apply, but a superannuation allowance shall not be granted under this section to a person who is under the age of seventy-two years, unless—

(a) the Treasury are satisfied by means of a medical certificate that he is incapable from infirmity of mind or body of discharging the duties of his office and that the infirmity is likely to be permanent; or

(b) he has served fifteen years as a registrar and has attained the age of sixty-five years.

(5) A whole-time registrar shall, for the purposes of the Superannuation Acts, be deemed to have served in the permanent Civil Service of the State notwithstanding that he has not been admitted to office with a certificate from the Civil Service Commissioners.

(6) For the purposes of this section, the period of service of a whole-time registrar shall be reckoned as from the date on which he became such a registrar.

Residence of
registrars.

22. A registrar shall not reside outside the district for which he is registrar, except with the consent of the Lord Chancellor and subject to such conditions as the Lord Chancellor may impose.

Records of
proceedings
to be kept by
registrars.

23.—(1) The registrar for every district shall keep or cause to be kept such records of and in relation to proceedings in the court for that district as the Lord Chancellor may by regulations prescribe.

(2) Any entry in a book or other document required by the said regulations to be kept for the purposes of this section, or a copy thereof purporting to be signed

and certified as a true copy by the registrar, shall at all times without further proof be admitted in any court or place whatsoever as evidence of the entry and of the proceeding referred to thereby and of the regularity of that proceeding.

PART I.
—cont.

Deputy and Assistant Registrars and other Officers.

24.—(1) The registrar for any district may from time to time, with the approval of the judge for that district, appoint a deputy to act for him at any time when he is prevented by illness or unavoidable absence from acting in his office : Deputy registrars.

Provided that where the registrar is unable to make such an appointment, the judge may make it.

(2) The appointment of a deputy of a registrar under the foregoing provisions of this section shall not be avoided by the vacation of office by the registrar from any cause whatsoever, but the acts of the deputy done thereafter shall be as valid as if the registrar had not vacated office, and the deputy shall continue to act until a successor to the registrar is appointed.

(3) Where a registrar vacates his office from any cause whatsoever and has not appointed a deputy, the judge may provisionally appoint a deputy to act for any period not exceeding three months.

(4) Any person appointing a deputy under this section may at his pleasure remove that deputy from office.

(5) Every deputy who is—

(a) appointed to act for a registrar who subsequently, during the period of the appointment, vacates his office from any cause whatsoever; or

(b) provisionally appointed under subsection (3) of this section to act during a vacancy in the office of registrar;

shall receive in respect of the period for which he acts as deputy during the vacancy such remuneration as the Lord Chancellor may, with the approval of the Treasury, direct.

PART I.
—*cont.*

(6) Where a deputy has been appointed in the case of the illness or unavoidable absence of a whole-time registrar, the Lord Chancellor may, with the approval of the Treasury, allow to the registrar such sums in respect of the remuneration and expenses of the deputy as he thinks fit.

Assistant
registrars.

25.—(1) The Lord Chancellor may, with the concurrence of the Treasury as to numbers and salaries, appoint in connection with any court such assistant registrars as he considers necessary for carrying out the work of the court, and may, if he thinks fit, remove any such assistant registrar from his office.

(2) Where there is an assistant registrar, the Lord Chancellor may direct which of the powers and duties of the registrar are to be exercised and performed by the assistant registrar.

Powers and
liabilities of
deputy and
assistant
registrars.

26. A deputy registrar while acting under his appointment, and an assistant registrar while exercising the powers or performing the duties specified in a direction of the Lord Chancellor given under the last foregoing section, shall have the same powers and be subject to the same liabilities as if he were the registrar.

Qualification of
deputy and
assistant
registrars.

27. No person shall be qualified to be appointed a deputy registrar or an assistant registrar unless he is a solicitor of at least seven years' standing.

Appoint-
ment and
removal of
subordinate
officers.

28.—(1) Subject as hereinafter provided, the Lord Chancellor may, with the concurrence of the Treasury as to numbers and salaries, appoint in connection with any court such clerks, bailiffs, ushers and messengers as he considers necessary for the purpose of carrying out the work of the court, and may from time to time direct what duties shall be performed by those officers respectively, and may, if he thinks fit, remove any such officer from his office :

Provided that where the registrar is paid a salary inclusive of the remuneration of any such officers (whether the part of the salary applicable to the payment of that remuneration is specified under section twenty of this Act or not), those officers shall be appointed and be removable by the registrar.

PART I.
—cont.

(2) Where a bailiff is appointed by the registrar, his appointment, notwithstanding that no direction has been given in his case by the Lord Chancellor under the next following section, shall not be vacated by the death or removal of the registrar, but his acts done thereafter shall be as valid as if the registrar had not died or been removed and had authorised those acts, and he shall continue to act until he is dismissed.

29.—(1) Subject to the provisions of this section, employment in court service shall, in the case of a person as respects whom a direction in that behalf is given by the Lord Chancellor with the concurrence of the Treasury, be deemed for all purposes to be employment in the civil service of the State, and, if a certificate has been issued to such a person by the Civil Service Commissioners, allowances may in his case be granted accordingly under the Superannuation Acts : Status and pensions of persons employed in court service.

Provided that, except so far as the Treasury in any case direct, no account shall be taken for the purposes of this section of court service before the issue of the certificate.

(2) Employment in court service shall, in relation to a person in whose case a direction has been given under this section, be deemed to be employment in a public department within the meaning of section four of the Superannuation Act, 1887, as amended by section three of the Superannuation Act, 1914.

50 & 51
Vict. c. 67.

(3) The provisions of this section shall have effect notwithstanding anything in any contract made between a registrar or a high bailiff and any other person.

(4) For the purposes of this Act, the expression “court service” means employment as an assistant registrar, or as a clerk, bailiff, usher or messenger in the service of a court, and includes employment in those capacities simultaneously with employment as a clerk in the service of a district registry of the High Court.

Miscellaneous Provisions as to Officers.

30.—(1) No officer of a court shall, either by himself or his partner, be directly or indirectly engaged as solicitor or agent for any party in any proceedings in that court. Officers of court not to act as solicitors therein.

PART I.
—*cont.*

(2) Every person who contravenes the provisions of this section shall, for each offence, be liable on summary conviction to a fine not exceeding fifty pounds.

Penalty for
assaulting
officers.

31. If any person assaults an officer of a court while in the execution of his duty, he shall be liable, either on an order made by the judge in that behalf or on summary conviction, to a fine not exceeding five pounds, and a bailiff of the court may take him into custody, with or without warrant, and bring him before the judge.

Misconduct
of officers.

32.—(1) If any officer of a court is charged—

- (a) with extortion or misconduct while acting under colour of the process of the said court;
or
- (b) with not duly paying or accounting for any money levied by him under the authority of this Act;

it shall be lawful for the judge to inquire into the matter in a summary way.

(2) For the purpose of any such inquiry, the judge may summon and enforce the attendance of all necessary parties in like manner as the attendance of witnesses in any case may be enforced.

(3) On any such inquiry the judge may make such order as he thinks just for the repayment of the money extorted or the due payment of the money levied, and for the payment of damages and costs, and also, if he thinks fit, may impose such fine upon the officer, not exceeding ten pounds for each offence, as appears to him to be adequate.

(4) If it is found by the judge that any officer, while employed in putting this Act or any of the powers thereof in execution, has wilfully and corruptly exacted or accepted any fee or reward whatsoever, other than such fees as are for the time being allowed by or under this Act, that officer shall, in addition to being liable for damages as in this section before provided, be for ever incapable of being employed under this Act in any office of profit or emolument :

Provided that this subsection shall not apply in the case of an officer appointed by the Lord Chancellor, unless the finding of the judge is confirmed by the Lord Chancellor.

PART I.
—cont.

Court Buildings and Offices.

33.—(1) Where, in any place in which a county court is held, there is a building, being a town hall, court-house or other public building belonging to any local or other public authority, that building shall, with all necessary rooms, furniture and fittings therein, be used for the purpose of holding the court, without any charge for rent or other payment, except the reasonable and necessary charges for lighting, warming and cleaning the building when used for the purpose aforesaid.

Use of public
buildings
for the
holding of
courts.

(2) Where any such building is used for the purpose of holding any court, the sittings of the court shall be so arranged as not to interfere with the business of the local or other public authority usually transacted in the building or with any purpose for which the building may be used by virtue of any local Act.

(3) This section shall not apply to any place in which a building was erected before the first day of January, eighteen hundred and eighty-nine, for the purpose of holding and carrying on the business of a county court.

34.—(1) The Commissioners of Works, on the representation of the Lord Chancellor made with the approval of the Treasury, shall from time to time build, purchase, hire or otherwise provide such court-house, offices and buildings as may be necessary for carrying on the business of any county court, and cause the court-house, offices and buildings to be furnished, cleaned, lighted and warmed.

Provision of
court-houses
by Commis-
sioners of
Works.

(2) For the purpose of any such purchase, the Lands Clauses Acts (except so much thereof as relates to the purchase of land otherwise than by agreement) are hereby incorporated with this Act, and in construing those Acts for the purposes of this Act, this Act shall be deemed to be the special Act and the Commissioners of Works shall be deemed to be the promoters of the undertaking.

PART I.
—cont.

(3) The duties of the Commissioners of Works under this section shall be exercised, notwithstanding anything in the last foregoing section of this Act, as respects any place to which that section applies, if it appears to the said Commissioners, on the representation of the Lord Chancellor made with the approval of the Treasury, that there is no town hall, courthouse, or other public building in that place which is suitable for the purpose of holding and carrying on the business of the court.

(4) For the purpose of providing a courthouse, offices and buildings under this section, it shall be lawful for the said Commissioners, with the approval of the Lord Chancellor, to contribute, on such terms as the Treasury may approve, to the expenses incurred by any local or other public authority in erecting or re-constructing a town hall, courthouse or other public building.

*Sittings.*Ordinary
sittings.

35.—(1) The judge for each district shall attend and hold the court at each of the places at which the court is required by or under this Act to be held within the district, and at such times as the judge may appoint, so however that the court shall be held at every such place once at least in every month or at such other intervals as the Lord Chancellor may in each case order.

(2) Notice of the days on which the court will be held shall be posted in some conspicuous place in the court-house and in the office of the registrar, and no other notice thereof shall be necessary.

(3) Whenever any day so appointed for the holding of the court is altered, notice of the intended alteration and of the time when it will take effect shall be posted in some such conspicuous place as aforesaid.

Adjourn-
ment of
court.

36.—(1) A judge may from time to time adjourn any court held by him.

(2) Where, by reason of death or unavoidable absence, a judge is not present at any sitting of a court, the registrar, after exercising any powers which he is authorised to exercise by or under this Act or any

other enactment, shall adjourn the court to such day as he thinks convenient, and enter in the minute book the cause of the adjournment.

PART I.
—cont.

37.—(1) A judge may, and if so required by the Lord Chancellor shall, appoint additional courts to be held, and may appoint any such additional court to be held at any place within the district at which an office is kept open by the registrar.

Additional
courts.

(2) Subject to county court rules, the registrar at any such additional court may, notwithstanding that the judge is not present, exercise any powers which he is authorised by or under this Act or any other enactment to exercise, and adjourn the court.

38. A judge may, with the consent of the parties to any proceedings, hear and determine the proceedings or any question arising therein at any place either within or without any district for which he is judge.

Extra-
ordinary
sittings.

39.—(1) No judge shall be obliged to hold any court during the month of September in any year unless he is ordered by the Lord Chancellor so to do.

Closing of
courts.

(2) If any judge desires to hold courts in the month of September and to be relieved from the obligation to hold courts during some other period of the year, the judge may, with the sanction of the Lord Chancellor, close the courts of which he is judge for any periods approved by the Lord Chancellor not exceeding in the aggregate four weeks in any year.

PART II.

JURISDICTION AND TRANSFER OF PROCEEDINGS.

Actions of Contract and Tort.

40.—(1) A county court shall have jurisdiction to hear and determine any action founded on contract or on tort where the debt, demand or damage claimed is not more than one hundred pounds, whether on balance of account or otherwise :

General
jurisdiction
in actions
of contract
and tort.

PART II.
—*cont.*

Provided that a county court shall not, except as in this Act provided, have jurisdiction to hear and determine—

- (a) any action for the recovery of land; or
- (b) any action in which the title to any hereditament or to any toll, fair, market or franchise is in question; or
- (c) any action for libel, slander, seduction or breach of promise of marriage.

(2) A county court shall have jurisdiction to hear and determine any action where the debt or demand claimed consists of a balance not exceeding one hundred pounds after a set-off of any debt or demand claimed or recoverable by the defendant from the plaintiff, being a set-off admitted by the plaintiff in the particulars of his claim or demand.

Money re-
coverable
by statute.

41. A county court shall have jurisdiction to hear and determine any action for the recovery of any penalty, expenses, contribution or other like demand which is recoverable by virtue of any enactment for the time being in force, if—

- (a) it is not expressly provided by that or any other enactment that the demand shall be recoverable only in some other court; and
- (b) the amount claimed in the action does not exceed one hundred pounds :

Provided that for the purposes of this section the expression “penalty” shall not include a fine to which any person is liable on conviction on indictment or on summary conviction.

Abandon-
ment of part
of claim to
give court
jurisdiction.

42.—(1) Where a plaintiff has a cause of action for more than one hundred pounds in which, if it were not for more than one hundred pounds, a county court would have jurisdiction, the plaintiff may abandon the excess, and thereupon a county court shall have jurisdiction to hear and determine the action, so, however, that the plaintiff shall not recover in the action an amount exceeding one hundred pounds.

(2) Where a court has jurisdiction to hear and determine an action by virtue of this section, the judgment

of the court in the action shall be in full discharge of all demands in respect of the cause of action, and entry of the judgment shall be made accordingly.

PART II.
—*cont.*

43. If, with respect to any action assigned for the time being to the King's Bench Division of the High Court, the parties to the action agree, by a memorandum signed by them or by their respective solicitors, that a county court specified in the memorandum shall have jurisdiction in the action, that court shall have jurisdiction to hear and determine the action accordingly.

Jurisdiction
by agree-
ment in
actions
assigned to
King's
Bench
Division.

44.—(1) Where there is commenced in a county court—

- (a) any action founded on contract wherein the plaintiff claims a sum exceeding twenty pounds; or
- (b) any action founded on tort wherein the plaintiff claims a sum exceeding ten pounds;

Transfer of
actions of
contract or
tort from
county
court to
High Court.

the defendant may give notice that he objects to the action being tried in the court.

(2) Where such a notice is given, the judge shall order that the action be transferred to the High Court, if—

- (a) the defendant gives security approved by the registrar for the amount claimed and the costs of trial in the High Court, not exceeding in the aggregate the sum of one hundred and fifty pounds; and
- (b) the judge certifies that in his opinion some important question of law or fact is likely to arise.

45.—(1) In any action commenced in the High Court to which this section applies, any party may at any time apply to the High Court or a judge thereof for an order that the claim and counterclaim (if any) or, if the only matter remaining to be tried is a counterclaim, the counterclaim, shall be transferred—

Transfer of
actions of
contract or
tort from
High Court
to county
court.

- (a) to any county court in which the action might have been commenced if the subject matter and the amount thereof had been within the jurisdiction of the court; or

PART II.
—*cont.*

- (b) if the only matter remaining to be tried is a counterclaim, to any county court in which the counterclaim might have been commenced if it had been an action and the subject matter thereof had been within the jurisdiction of the court; or
- (c) to any county court which the High Court or judge may deem the most convenient to the parties;

and the High Court or judge may thereupon, if the Court or judge thinks fit, order that the claim or counterclaim or both (as the case may be) be so transferred accordingly.

(2) This section applies to any action where—

- (a) the plaintiff's claim is founded either on contract or on tort and the amount claimed or remaining in dispute in respect thereof does not exceed one hundred pounds, whether the action could or could not have been commenced in a county court, and whether the defendant does or does not set up, or intend to rely on, a counterclaim, and whether the counterclaim (if any) is founded on contract or on tort, and whether the amount claimed on the counterclaim (if any) exceeds or does not exceed one hundred pounds; or
- (b) the only matter remaining to be tried between the parties is a counterclaim founded either on contract or on tort and the amount claimed or remaining in dispute in respect of the counterclaim does not exceed one hundred pounds, whether the counterclaim, if it had been an action, could or could not have been commenced in a county court:

Provided that this section shall not apply to any action to which section fifty-four or section fifty-eight of this Act applies.

Transfer
from High
Court to
county court
of actions of

46.—(1) Where any action founded on tort is commenced in the High Court, the defendant may, on an affidavit made by himself or by any person on his behalf showing that the plaintiff has no visible means of paying

the costs of the defendant should a verdict not be found for the plaintiff, apply to the High Court or a judge thereof for an order to transfer the action to a county court.

PART II.
—*cont.*

tort where
plaintiff
impecu-
nious.

(2) On any such application, the High Court or judge, unless the plaintiff satisfies the Court or judge that he has such means as aforesaid, may, if the Court or judge having regard to all the circumstances of the case thinks fit so to do, make an order that, unless the plaintiff within a time to be limited in the order gives security for the defendant's costs to the satisfaction of the Court or a judge, the action shall be transferred to such county court, to be named in the order, as the Court or judge may deem the most convenient to the parties.

47.—(1) Where an action is commenced in the High Court which could have been commenced in a county court, then, subject to the provisions of subsection (3) and subsection (4) of this section—

Costs of
actions of
contract or
tort com-
menced in
High Court
which could
have been
commenced
in county
court.

(a) if the plaintiff recovers a sum less—

(i) in the case of an action founded on contract, than forty pounds; or

(ii) in the case of an action founded on tort, than ten pounds;

he shall not be entitled to any costs of the action; and

(b) if the plaintiff recovers—

(i) in the case of an action founded on contract, a sum of forty pounds or upwards but less than one hundred pounds; or

(ii) in the case of an action founded on tort, a sum of ten pounds or upwards but less than fifty pounds;

he shall not be entitled to any more costs of the action than those to which he would have been entitled if the action had been brought in a county court.

(2) Where a plaintiff is entitled to costs on a county court scale only, the taxing master shall have the same power of directing on what county court scale and under what column in the scale costs are to be allowed, and of

PART II.
—*cont.* allowing any items of costs, as the judge would have had if the action had been brought in a county court.

(3) In any such action as aforesaid, whether founded on contract or tort, the High Court or a judge thereof (or where the matter is tried before a referee or officer of the Supreme Court, that referee or officer), if satisfied—

- (a) that there was sufficient reason for bringing the action in the High Court; or
- (b) that the defendant or one of the defendants objected to the transfer of the action to a county court;

may make an order allowing the costs or any part of the costs thereof on the High Court scale or on such one of the county court scales and under such one of the columns in the scale as he may direct.

(4) If in any action the claim is for a debt or liquidated demand only for a sum of twenty pounds or upwards, and—

- (a) the defendant pays the amount claimed or a sum of not less than twenty pounds within the time limited in that behalf by the endorsement made on the writ in accordance with the rules of the Supreme Court; or
- (b) the plaintiff, within twenty-eight days after the service of the writ, or within such further time as may be allowed by the High Court or a judge thereof, obtains judgment in default of appearance or of defence for a sum of twenty pounds or upwards; or
- (c) the plaintiff, within twenty-eight days after the service of the writ, or within such further time as may be allowed by the High Court or a judge thereof, obtains, under any rule of the Supreme Court providing for summary judgment without trial, an order empowering him to sign judgment for a sum of twenty pounds or upwards, either unconditionally or unless that sum is paid into court or to the plaintiff's solicitor;

the plaintiff shall, unless otherwise ordered by the High Court or a judge thereof, be entitled to costs on such scale as may be prescribed by the rules of the Supreme Court.

(5) This section applies only to the costs of the proceedings in the High Court, and shall have effect subject to the provisions of section fifty-nine of this Act.

PART II.
—cont.

(6) This section shall not apply in the case of any proceedings by the Crown.

Recovery of Land and Cases where Title in Question.

48.—(1) A county court shall have jurisdiction to hear and determine any action for the recovery of land where neither the value of the land in question nor the rent payable in respect thereof exceeds the sum of one hundred pounds by the year.

Jurisdiction
in actions
for recovery
of land.

(2) References in any enactment to section one hundred and thirty-eight or one hundred and thirty-nine of the County Courts Act, 1888, or to any provision which was repealed by that Act and re-enacted in either of those sections, shall be construed as a reference to this section.

51 & 52 Vict.
c. 43.

49.—(1) Where an action for the recovery of land is commenced in a county court, the defendant or his landlord may, within such time as may be prescribed by county court rules, apply to a judge of the High Court at chambers for a summons to the plaintiff to show cause why the action should not be transferred to the High Court on the ground that the title to land of greater annual value than one hundred pounds would be affected by the decision in the action.

Transfer of
actions for
recovery
of land
from county
court to
High Court.

(2) On the hearing of any such summons, the judge of the High Court, if satisfied that such a title as aforesaid would be so affected, may order that the action be transferred to the High Court.

(3) Where, in an action for the recovery of land commenced in a county court, no application is made to the High Court in accordance with this section, or where such an application is made but no order is made for the transfer of the action, the county court shall have jurisdiction to hear and determine the action notwithstanding the provisions of this Act relating to actions in which the title to hereditaments comes in question.

PART II.
—*cont.*
Transfer of
actions for
recovery of
land from
High Court
to county
court.

50.—(1) In any action commenced in the High Court to which this section applies, any party may at any time apply to the High Court or a judge thereof for an order that the action be transferred to any county court—

- (a) in which the action could have been commenced; or
- (b) which the High Court or judge may deem the most convenient to the parties:

and the High Court or judge may thereupon, if the Court or judge thinks fit, order that the action be transferred accordingly.

(2) This section applies to any action where—

- (a) the plaintiff's claim is for recovery of land, with or without a claim for rent or mesne profits, by a landlord against a tenant, or any person holding or claiming by, through, or under a tenant, whose term—
 - (i) has expired or has been duly determined by notice to quit; or
 - (ii) has become liable to forfeiture for non-payment of rent; and
- (b) the action could have been commenced in a county court.

Jurisdiction
where title
in question.

51. A county court shall have jurisdiction to hear and determine any action in which the title to any hereditament comes in question, being an action which would otherwise be within the jurisdiction of the court—

- (a) in the case of an easement or licence, if neither the value nor the rent of the hereditament in respect of which the easement or licence is claimed, or on, through, over or under which the easement or licence is claimed, exceeds the sum of one hundred pounds by the year; or
- (b) in any other case, if neither the value of the hereditament in question nor the rent payable in respect thereof exceeds the sum of one hundred pounds by the year.

Equity Proceedings.

PART II.

—cont.

52.—(1) A county court shall have all the jurisdiction of the High Court to hear and determine any of the following proceedings, that is to say—

Equity
jurisdiction.

- (a) proceedings for the administration of the estate of a deceased person, where the estate does not exceed in amount or value the sum of five hundred pounds;
- (b) proceedings for the execution of any trust or for a declaration that a trust subsists, where the estate or fund subject or alleged to be subject to the trust does not exceed in amount or value the sum of five hundred pounds;
- (c) proceedings for foreclosure or redemption of any mortgage or for enforcing any charge or lien, where the amount owing in respect of the mortgage, charge or lien does not exceed the sum of five hundred pounds;
- (d) proceedings for the specific performance, or for the rectification, delivery up or cancellation, of any agreement for the sale, purchase or lease of any property, where, in the case of a sale or purchase, the purchase money, or, in the case of a lease, the value of the property, does not exceed the sum of five hundred pounds;
- (e) proceedings relating to the maintenance or advancement of an infant, where the property of the infant does not exceed in amount or value the sum of five hundred pounds;
- (f) proceedings for the dissolution or winding up of any partnership (whether or not the existence of the partnership is in dispute), where the whole assets of the partnership do not exceed in amount or value the sum of five hundred pounds;
- (g) proceedings for relief against fraud or mistake, where the damage sustained or the estate or fund in respect of which relief is sought does not exceed in amount or value the sum of five hundred pounds.

(2) In all such proceedings as aforesaid the judge shall, in addition to any other powers and authorities possessed by him, have all the powers and authorities for the purposes of this Act of a judge of the Chancery Division of the High Court.

PART II.
—cont.

(3) Without prejudice to the generality of the foregoing provisions of this section, a county court shall have jurisdiction (including power to receive payment of money or securities into court) under the enactments set out in the first column of the Second Schedule to this Act in the cases respectively mentioned in the second column of that Schedule.

Jurisdiction
by agree-
ment in
certain
equity pro-
ceedings.

53.—(1) If, as respects any proceedings to which this section applies, the parties agree, by a memorandum signed by them or by their respective solicitors or agents, that a county court specified in the memorandum shall have jurisdiction in the proceedings, that court shall, notwithstanding anything in any enactment, have jurisdiction to hear and determine the proceedings accordingly.

15 & 16
Geo. 5. c. 18.

(2) This section applies to any proceedings in which a county court would have jurisdiction by virtue of the last foregoing section of this Act or subsection (3) of section one hundred and thirteen of the Settled Land Act, 1925, but for the limitation of the jurisdiction of the court provided in those enactments.

Transfer of
equity pro-
ceedings
from High
Court to
county
court.

54.—(1) Where there is commenced in the High Court any action or matter to which this section applies, any party thereto may apply to the High Court or a judge thereof for an order that the action or matter be transferred to a county court, and thereupon the Court or judge may, if it or he thinks fit, order that the action or matter be transferred to any county court which the Court or judge may deem the most convenient to the parties.

(2) This section applies to any action or matter which is assigned for the time being to the Chancery Division of the High Court and is, by virtue of any enactment for the time being in force, within the jurisdiction of a county court.

Admiralty Proceedings.

Districts for
admiralty
purposes.

55.—(1) If at any time it appears expedient to the Lord Chancellor that any county court should have admiralty jurisdiction, it shall be lawful for him by order—

(a) to appoint that court to have, as from such date as may be specified in the order, such admiralty

jurisdiction as is hereafter provided in this Act; and

PART II.
—cont.

- (b) to assign to that court as its district for admiralty purposes any part or parts of any county court district or of two or more county court districts:

Provided that no court except the Mayor's and City of London court shall have admiralty jurisdiction in the City of London.

(2) Where a district has been so assigned to a court as its district for admiralty purposes, the parts of the sea (if any) adjacent to that district to a distance of three miles from the shore thereof shall be deemed to be included in that district, and the judge and all officers of the court shall have jurisdiction and authority for those purposes throughout that district as if it were the district of the court for all purposes.

(3) Subject to any alterations made in pursuance of this section, the county courts appointed under the County Courts Admiralty Jurisdiction Act, 1868, to have admiralty jurisdiction at the commencement of this Act shall continue to have such admiralty jurisdiction as is hereafter provided in this Act throughout the districts respectively assigned to them for admiralty purposes at the commencement of this Act. 31 & 32 Vict. c. 71.

(4) Any order made under this section may be varied from time to time or revoked, as appears expedient, by a subsequent order made thereunder.

(5) Where an order is made under this section for the discontinuance of the admiralty jurisdiction of any county court, whether wholly or within a part of the district assigned to it for admiralty purposes, provision may be made in the order with respect to any admiralty proceedings commenced in that court before the order comes into operation.

56.—(1) An admiralty county court shall, in relation to admiralty matters, have jurisdiction to hear and determine any of the following claims :— Jurisdiction in admiralty proceedings.

- (a) any claim for damage received by a ship;
- (b) any claim for damage done by a ship;
- (c) any claim in the nature of salvage for services rendered to a ship (including, subject to the

PART II.

—*cont.*

57 & 58 Vict.

c. 60.

10 & 11

Geo. 5. c. 80.

provisions of sections five hundred and forty-four and five hundred and forty-five of the Merchant Shipping Act, 1894, services rendered in saving life from a ship) and any claim under section eleven of the Air Navigation Act, 1920, or any Order in Council made thereunder;

- (d) any claim in the nature of towage;
- (e) any claim for necessities supplied to a foreign ship, and, unless it is shown to the court that at the time of the institution of the proceedings any owner or part owner of the ship was domiciled in England, any claim for any necessities supplied to a ship elsewhere than in the port to which the ship belongs;
- (f) subject to the provisions of sections one hundred and sixty-five and one hundred and sixty-seven of the Merchant Shipping Act, 1894, any claim by a seaman of a ship for wages earned by him on board the ship, whether due under a special contract or otherwise, and any claim by the master of a ship for wages earned by him on board the ship and for disbursements made by him on account of the ship;
- (g) any claim—
 - (i) arising out of an agreement relating to the use or hire of a ship; or
 - (ii) relating to the carriage of goods in a ship; or
 - (iii) in tort in respect of goods carried in a ship;

and the jurisdiction of the court to hear and determine any claim mentioned in this subsection shall, save as provided by paragraph (e) thereof, be exercisable wherever the owners or part owners of any ship or aircraft in respect of which the claim is brought may be domiciled:

Provided that, subject to the provisions of this section, no county court shall have jurisdiction to hear and determine any claim mentioned in this subsection for an amount exceeding three hundred pounds, except in the case of a claim mentioned in paragraph (c) of this subsection where the value of the property saved does not exceed one thousand pounds.

PART II.
—*cont.*

(2) If, as respects any proceedings as to any such claim as is herebefore in this section mentioned, the parties agree, by a memorandum signed by them or by their respective solicitors or agents, that an admiralty county court specified in the memorandum shall have jurisdiction in the proceedings, that court shall, notwithstanding anything in the proviso to the last foregoing subsection, have jurisdiction to hear and determine the proceedings accordingly.

(3) The provisions of this section which confer admiralty jurisdiction in respect of claims for damage shall be construed as extending to claims for loss of life or personal injuries.

(4) The jurisdiction conferred by this section may be exercised either in proceedings in rem or in proceedings in personam.

(5) Nothing in this section, or in the last foregoing section of this Act or any order made thereunder, shall be taken to confer on a county court the jurisdiction of a prize court within the meaning of the Naval Prize Acts, 1864 to 1916.

(6) Nothing in this section shall be taken to affect the jurisdiction of any county court to hear and determine any proceedings in which it has jurisdiction by virtue of sections forty or forty-two of this Act.

(7) In this section, unless the context otherwise requires, the expression "ship" includes any description of vessel whatsoever.

(8) Section five hundred and fifty-five of the Merchant Shipping Act, 1894, shall have effect as if there were inserted after the word "agreement" the words "or by a county court in England."

57.—(1) The High Court, on the application of any party to admiralty proceedings pending in a county court, may, if it thinks fit, after notice has been given to the other party, order that the proceedings be transferred to the High Court and order security for costs or impose such other terms as the Court thinks fit.

Transfer of
admiralty
proceedings
from county
court to
High Court.

(2) If, during the progress of any admiralty proceedings in a county court, it appears to the county court that the proceedings could be more conveniently

PART II.
—cont.

prosecuted in the High Court, the county court may order that the proceedings be transferred to the High Court.

Transfer of
admiralty
proceedings
from High
Court to
county
court.

58.—(1) In any action commenced in the High Court to which this section applies—

- (a) any party may at any time apply to the High Court or a judge thereof for an order that the claim and counterclaim (if any) or, if the only matter remaining to be tried is a counterclaim, the counterclaim, shall be transferred to an admiralty county court; and
- (b) the High Court or judge may thereupon, if it or he thinks fit, order that the claim and counterclaim (if any) or, if the only matter remaining to be tried is a counterclaim, the counterclaim, be transferred to any admiralty county court which the Court or judge may deem the most convenient to the parties.

15 & 16
Geo. 5. c. 49.

(2) This section applies to any action where the plaintiff's claim is any such claim as is mentioned in subparagraph (iii), (iv), (v), (vi), (vii), (viii) or (xii) of paragraph (a) of subsection (1) of section twenty-two of the Supreme Court of Judicature (Consolidation) Act, 1925, and the amount claimed or remaining in dispute in respect thereof does not exceed the amount by which the jurisdiction of an admiralty county court in respect of the claim is limited—

- (a) whether the action could or could not have been commenced in a county court; and
- (b) whether the defendant does or does not set up or intend to rely on a counterclaim; and
- (c) whether the counterclaim (if any), if it had been a claim in an action, would or would not have been within the jurisdiction of a county court.

(3) Where an action is transferred to a county court under this section, any vessel or other property, which has been arrested in the action before the transfer, shall, notwithstanding the transfer, remain in the custody of the Admiralty Marshal who shall, subject to any directions of the High Court, comply with any orders made by the county court with respect to that vessel or property.

59.—(1) The following provisions of this section shall have effect in relation to the exercise by the High Court of the admiralty jurisdiction of that Court.

PART II.
—*cont.*

(2) If in any claim for salvage services the plaintiff does not recover more than three hundred pounds, he shall not be entitled to recover any costs of the proceedings unless it is certified by the Court or a judge that the case was a fit one to be tried otherwise than in a county court.

Costs of certain admiralty proceedings commenced in High Court which could have been commenced in county court.

(3) If in any claim arising out of an agreement relating to the use or hire of a ship, or any claim relating to the carriage of goods in a ship, or any claim in tort in respect of goods carried in a ship, the plaintiff recovers a less amount than twenty pounds, he shall not be entitled to any costs of the proceedings unless it is certified by the Court or a judge that there was sufficient reason for bringing the proceedings in the High Court.

(4) If in any such claim as is mentioned in subsection (3) of this section the plaintiff recovers a less amount than three hundred pounds, he shall not be entitled to any more costs than those to which he would have been entitled if the proceedings had been brought in a county court, unless it is certified by the Court or a judge that there was sufficient reason for bringing the proceedings in the High Court.

Probate Proceedings.

60.—(1) Where, on an application made under section one hundred and fifty of the Supreme Court of Judicature (Consolidation) Act, 1925, through the principal probate registry for the grant or revocation of probate or administration, a registrar of that registry is satisfied by affidavit—

Jurisdiction in probate proceedings.

- (a) that the personal estate of the person in respect of whose estate the application is made, exclusive of what he was possessed of or entitled to as a trustee and not beneficially, but without any deduction on account of his debts, was at the time of his death under the value of two hundred pounds; and
- (b) that at that time he was not seised or entitled beneficially of or to any real estate of the value of three hundred pounds or upwards;

PART II.
—*cont.*

the judge of the county court having jurisdiction in the place of abode of the deceased shall have the jurisdiction of the High Court in respect of any contentious matter arising in connection with the said grant or revocation.

(2) The statements in the affidavit aforesaid as to the place of abode and state of the property of the deceased shall, subject as hereinafter provided, be conclusive for the purpose of authorising the exercise of the jurisdiction conferred on a judge of a county court by the foregoing provisions of this section and the grant or revocation of probate or administration in compliance with the order of the judge :

Provided that, where it is shown to the judge of a county court before whom any matter is pending under this section that the place of abode or state of the property of the deceased has not been correctly stated in the affidavit, and, if correctly stated, would not have authorised him to exercise jurisdiction in the matter, he shall stay all further proceedings in the matter in his court and make such order as to the costs of the proceedings as he thinks just, and any party may apply to the High Court for the grant or revocation in question.

Transfer of
probate pro-
ceedings
from High
Court to
county
court.

61. Where in any contentious matter arising out of an application for the grant or revocation of probate or administration made through the principal probate registry, the High Court is satisfied that the state of the property and the place of abode of the deceased were such as to give jurisdiction in the matter to a county court, the High Court may order that the matter be transferred to that county court.

Effect of
order of
judge in
probate
proceedings.

62. Where an order is made by a judge of a county court for the grant or revocation of probate or administration in pursuance of any jurisdiction conferred upon him by the last two foregoing sections of this Act—

(a) the registrar of the county court shall transmit to the registrar of such district probate registry as he thinks convenient a certificate under the seal of the court certifying that the order has been made; and

- (b) on the application of a party in favour of whom the order has been made, a probate or administration in compliance with the order shall be issued from the district probate registry, or, as the case may require, the probate or letters of administration theretofore granted shall be recalled or varied by the district probate registrar according to the effect of the order.

PART II.
--cont.

Miscellaneous Provisions as to Jurisdiction.

63.—(1) Where, in any action or matter commenced in a county court, any counterclaim or set off and counterclaim of any defendant involves matter beyond the jurisdiction of a county court, any party to the action or matter may, within such time as may be prescribed by rules of the Supreme Court, apply to the High Court or a judge thereof for an order that the whole proceedings, or the proceedings on the counterclaim or set off and counterclaim, be transferred to the High Court.

Jurisdiction
as to
counter-
claims.

(2) On any such application the High Court or judge may, as it or he thinks fit, order either—

- (a) that the whole proceedings be transferred to the High Court; or
- (b) that the whole proceedings be heard and determined in the county court; or
- (c) that the proceedings on the counterclaim or set off and counterclaim be transferred to the High Court and that the proceedings on the plaintiff's claim and the defence thereto other than the set off (if any) be heard and determined in the county court:

Provided that, where an order is made under paragraph (c) of this subsection, and judgment on the claim is given for the plaintiff, execution thereon shall, unless the High Court or a judge thereof at any time otherwise orders, be stayed until the proceedings transferred to the High Court have been concluded.

(3) If no application is made under this section within the time prescribed as aforesaid, or if on such an application it is ordered that the whole proceedings be heard and determined in the county court, the county

PART II.
—*cont.*

court shall have jurisdiction to hear and determine the whole proceedings, notwithstanding any enactment to the contrary.

Procedure where proceedings beyond jurisdiction are commenced in county court.

64. Where any proceedings are commenced in a county court in which a county court has no jurisdiction, the court shall, unless it is given jurisdiction by an agreement made under the provisions of section forty-three or section fifty-three or subsection (2) of section fifty-six of this Act, order that the proceedings be transferred to the High Court :

Provided that where, on the application of any defendant, it appears to the court that the plaintiff or one of the plaintiffs knew or ought to have known that the court had no jurisdiction in the proceedings, the court may, if it thinks fit, instead of ordering that the proceedings be transferred as aforesaid, order that they be struck out.

Transfer of proceedings from High Court to county court by agreement.

65. If, where proceedings have been commenced in the High Court, an agreement is made under the provisions of section forty-three or section fifty-three or subsection (2) of section fifty-six of this Act, that a county court shall have jurisdiction in those proceedings, the High Court or a judge thereof shall, on the application of any party to the proceedings, order that the proceedings be transferred to that county court.

Transfer of interpleader proceedings from High Court to county court.

66. If it appears to the High Court or a judge thereof that any proceedings in the High Court by way of interpleader, in which the amount or value of the matter in dispute does not exceed the sum of five hundred pounds, may be more conveniently heard and determined in a county court, the High Court or judge may at any time order that the proceedings be transferred to any county court in which proceedings might have been brought by any party to the interpleader against any other party thereto if there had been a trust to be executed concerning the matter in question.

Division of causes of action.

67. It shall not be lawful for any plaintiff to divide any cause of action for the purpose of bringing two or more actions in one or more of the county courts.

No action on judgment of other courts.

68. No action shall be brought in a county court on any judgment of the High Court or of any other court in England.

69. Where any action is brought in any court other than the High Court which could have been brought in a county court, and judgment is recovered for a sum less than ten pounds, the plaintiff shall not recover any more costs of the action than those to which he would have been entitled if the action had been brought in a county court.

PART II.

—cont.

Costs of actions commenced in courts other than High Court which could have been commenced in county court.

Exercise of Jurisdiction and Ancillary Jurisdiction.

70. Any jurisdiction and powers conferred on any county court by this or any other Act may be exercised by any judge of the court or by any deputy of any such judge or, to the extent authorised by this or any other Act or by county court rules, by any registrar of the court or any person authorised as aforesaid to discharge the functions of the registrar of the court.

Persons who may exercise jurisdiction of court.

71. Every county court, as regards any cause of action for the time being within its jurisdiction, shall in any proceedings before it—

General ancillary jurisdiction.

- (a) grant such relief, redress or remedy or combination of remedies, either absolute or conditional; and
- (b) give such and the like effect to every ground of defence or counterclaim equitable or legal (subject to the provisions of section sixty-three of this Act);

as ought to be granted or given in the like case by the High Court and in as full and ample a manner.

72. A judge shall, whether within a district for which he is judge or not, have jurisdiction in any proceedings pending in any of the courts of which he is judge to make any order or to exercise on an ex-parte application any authority or jurisdiction which, if it related to an action or proceeding pending in the High Court, might be made or exercised by a judge of the High Court in chambers.

Ancillary powers of judge.

PART II.

—cont.

Costs in
cases trans-
ferred from
one court to
another.

General Provisions as to Transfer of Actions.

73. Where an action, counterclaim or matter is ordered to be transferred—

- (a) from the High Court to a county court; or
- (b) from a county court to the High Court; or
- (c) from one county court to another county court;

the costs of the whole proceedings both before and after the transfer shall, subject to any order made by the court which ordered the transfer, be in the discretion of the court to which the proceedings are transferred, and that court shall have power to make orders with respect thereto and as to the scales or columns on or under which the costs of the several parts of the proceedings are to be taxed, and the costs of the whole proceedings shall be taxed in that court :

Provided that, as regards so much of the proceedings in any action transferred from the High Court to a county court as take place in the High Court before the transfer—

- (i) the costs thereof shall be subject to the provisions of section forty-seven of this Act; and
- (ii) the powers of the High Court or judge thereof under subsection (3) of that section to make an order allowing costs on the High Court scale, or on or under any county court scale or column, shall, subject to any order of the High Court or the judge by whom the transfer was ordered, be exerciseable by the judge of the county court.

Procedure
on transfer
of cases
from High
Court.

74.—(1) Where an action, counter-claim or matter is ordered to be transferred from the High Court to a county court—

- (a) any party may lodge with the registrar of the county court named in the order, or cause to be lodged with him, the order and the writ, or copies thereof, and such other documents (if any) as the High Court or a judge thereof may direct; and
- (b) the proper officer of the Supreme Court shall, on the application of that party and on production of the order and the filing of a copy thereof, send by post to the registrar of the county

court all pleadings, affidavits and other documents filed in the High Court relating to the action, counter-claim or matter.

PART II.
—*cont.*

(2) On the documents aforesaid being so lodged or sent, the action and counter-claim (if any) or the counter-claim or matter shall be transferred to the said county court, and subject to county court rules all further proceedings therein shall be taken and tried as if the action, counter-claim or matter had been originally commenced in that county court, and the county court shall have jurisdiction to deal therewith, notwithstanding any enactment to the contrary :

Provided that the transfer shall not affect any right of appeal in the High Court or to the Court of Appeal from the order directing the transfer, or the right to enforce in the High Court any judgment signed, or order made, in that Court before the transfer.

PART III.

PROCEDURE.

Parties.

75.—(1) Subject to the provisions of any enactment limiting the jurisdiction of a county court, whether by reference to the subject matter of the proceedings to be brought or the amount sought to be recovered in the proceedings or otherwise, proceedings by the Crown may be instituted in a county court, and accordingly the power of the Attorney General, and any power conferred by any enactment upon a Government department or upon an officer of the Crown as such, to institute proceedings by the Crown shall include power to institute such proceedings in a county court.

Proceedings
by the
Crown.

(2) Subject as hereinafter provided, all rules of law and enactments regulating the removal or transfer of proceedings from a county court to the High Court and the transfer of proceedings in the High Court to a county court shall apply respectively to the removal or transfer of proceedings by the Crown in a county court and to the transfer of proceedings by the Crown in the High Court instituted by writ of summons :

Provided that an order for the transfer to a county court of any proceedings by the Crown in the High Court shall not be made without the consent of the Crown.

(3) Nothing in this section shall apply to proceedings affecting His Majesty in His private capacity.

PART III.
—cont.Executors
and admin-
istrators.

76. Any executor or administrator may sue and be sued in a county court in like manner as if he were a party in his own right, and judgment and execution shall be such as in the like case would be given or issued in the High Court.

Infants.

77. Any person under the age of twenty-one years may prosecute any action in a county court for any sum of money not exceeding one hundred pounds which may be due to him for wages or piece work, or for work as a servant, in the same manner as if he were of full age.

Persons
jointly
liable.

78.—(1) Where a plaintiff has a demand recoverable under this Act against two or more persons jointly liable, it shall be sufficient to serve any of those persons with process, and judgment may be obtained and execution issued against any person so served, notwithstanding that others jointly liable may not have been served or sued or may not be within the jurisdiction of the court.

(2) Where judgment is obtained against any person as aforesaid and is satisfied by that person, he shall be entitled to recover in the court contribution from any other person jointly liable with him.

Bankruptcy
of plaintiff.

79.—(1) The bankruptcy of the plaintiff in any action in a county court which the trustee might maintain for the benefit of the creditors shall not cause the action to abate if, within such reasonable time as the court orders, the trustee elects to continue the action and to give security for the costs thereof.

(2) The hearing of the action may be adjourned until such an election is made.

(3) Where the trustee does not elect to continue the action and to give such security as aforesaid within the time limited by the order, the defendant may avail himself of the bankruptcy as a defence to the action.

*Arrest in Admiralty Proceedings.*Arrest in
admiralty
proceedings.

80.—(1) If, in any admiralty proceedings in a county court, evidence is given to the satisfaction of the judge, or, in his absence, the registrar, that it is probable that the vessel, aircraft or property to which the proceedings relate

will be removed out of the jurisdiction of the court before the plaintiff's claim is satisfied, the judge or registrar, as the case may be, may issue a warrant for the arrest and detention of the vessel, aircraft or property, unless or until bail to the amount of the claim made in the proceedings and the reasonable costs of the plaintiff in the proceedings be entered into and perfected according to county court rules by or on behalf of the defendant.

PART III.
—*cont.*

(2) Except as in this section expressly provided, and notwithstanding anything in section seventy-one of this Act, no vessel, aircraft or property shall be arrested or detained in admiralty proceedings in a county court otherwise than in execution.

Witnesses and Evidence.

81.—(1) Any person summoned in pursuance of county court rules as a witness in a county court who— Penalty for neglecting witness summons.

(a) refuses or neglects, without sufficient cause, to appear or to produce any documents required by the summons to be produced; or

(b) refuses to be sworn or give evidence;

shall forfeit such fine not exceeding ten pounds as the judge may direct:

Provided that no person so summoned shall forfeit a fine as aforesaid unless there has been paid or tendered to him at the time of the service of the summons such sum in respect of his expenses (including in such cases as may be prescribed compensation for loss of time) as may be prescribed for the purposes of this section.

(2) Any person present in court who is required to give evidence but refuses to be sworn or give evidence shall forfeit such a fine as aforesaid.

(3) The judge may at his discretion direct that the whole or any part of any such fine, after deducting the costs, shall be applicable towards indemnifying the party injured by the refusal or neglect.

82.—(1) The High Court shall, on application made in manner prescribed by rules of the Supreme Court, have the same power to issue a commission, request or order to examine witnesses abroad for the purpose of proceedings in a county court as it has for the purpose of an action or matter in the High Court. Examination of witnesses abroad.

PART III.
—*cont.*

(2) Where such an application is made, the High Court may, if it thinks fit, order that the proceedings be transferred to the High Court.

Evidence of
prisoners.

83.—(1) In any proceedings pending before a county court, the judge may, if he thinks fit, upon application on affidavit by any party, issue an order under his hand for bringing up before the court any person (hereafter in this section referred to as a “prisoner”) confined in any place under any sentence or under commitment for trial or otherwise, to be examined as a witness in the proceedings:

Provided that no such order shall be made with respect to a person confined under process in any civil action or matter.

(2) The prisoner mentioned in any such order shall be brought before the court under the same custody, and shall be dealt with in the same manner in all respects, as a prisoner required by a writ of habeas corpus to be brought before the High Court and examined therein as a witness:

Provided that the person having the custody of the prisoner shall not be bound to obey the order unless there is tendered to him a reasonable sum for the conveyance and maintenance of a proper officer or officers and of the prisoner in going to, remaining at, and returning from the court.

Persons who
may take
affidavits
for use in
county
court.

84.—(1) An affidavit to be used in a county court may be sworn before—

- (a) the judge or registrar of any court; or
- (b) any justice of the peace; or
- (c) an officer of any court appointed by the judge of that court for the purpose;

as well as before any person authorised to take affidavits under the Commissioners for Oaths Acts, 1889 to 1891.

(2) An affidavit sworn before a judge or registrar or before any such officer as aforesaid, may be sworn without the payment of any fee.

Evidence in
admiralty
proceedings.

85.—(1) In any admiralty proceedings, evidence taken before a registrar of an admiralty county court, in accordance with the directions of a judge or pursuant

to county court rules, shall be received as evidence in any other admiralty county court, saving all just exceptions.

PART III.
—cont.

(2) The registrar of any admiralty county court shall, for the purpose of the examination of any witness within the district assigned to that court for admiralty purposes, have all the power of an examiner of the High Court, and evidence taken by him in that capacity shall be received as evidence in the High Court, saving all just exceptions.

Right of Audience and Mode of Trial.

86. In any proceedings in a county court any of the following persons may address the court, namely—

Right of
Audience.

- (a) any party to the proceedings;
- (b) a barrister retained by or on behalf of any party;
- (c) a solicitor acting generally in the proceedings for a party thereto, but not a solicitor retained as an advocate by a solicitor so acting;
- (d) any other person allowed by leave of the court to appear instead of any party:

Provided that—

- (i) the right of a solicitor to address the court shall not be excluded by reason only that he is in the permanent and exclusive employment of any other solicitor; and
- (ii) a court may refuse to hear a person claiming to address the court as a solicitor, unless that person has signed and delivered to the court a statement of his name and place of business and the name of the firm (if any) of which he is a member.

87. Subject to the provisions of this Act, the judge of a county court shall be the sole judge in all proceedings brought in the court, and shall determine all questions of fact as well as of law:

Trial by
judge or
registrar.

Provided that, subject to county court rules, the registrar may, on the application of the parties and by leave of the judge, hear and determine any proceedings in which the sum claimed or the amount involved does not exceed ten pounds.

PART III.

—cont.

Assessors.

88.—(1) In any proceedings the judge may, if he thinks fit on the application of any party, summon to his assistance, in such manner as may be prescribed, one or more persons of skill and experience in the matter to which the proceedings relate who may be willing to sit with the judge and act as assessors.

(2) The remuneration of assessors for sitting as aforesaid shall be at such rate as may be prescribed, and shall be costs in the proceedings unless otherwise ordered by the judge.

(3) Where any person is proposed to be summoned as an assessor, objection to him, either personally or in respect of his qualification, may be taken by any party in the prescribed manner.

Power of
judge to
refer to
arbitration.

89.—(1) The judge may, with the consent of the parties to any proceedings, order the proceedings to be referred to arbitration (whether with or without other matters within the jurisdiction of the court in dispute between the parties) to such person or persons and in such manner and on such terms as he thinks just and reasonable.

(2) No such reference shall be revocable by any party except with the consent of the judge.

(3) On any such reference the award of the arbitrator, arbitrators or umpire shall be entered as the judgment in the proceedings and shall be as binding and effectual to all intents as if given by the judge :

Provided that the judge may, if he thinks fit, on application made to him at the first court held after the expiration of one week after the entry of the award, set aside the award, or may, with the consent of the parties, revoke the reference or order another reference to be made in the manner aforesaid.

(4) In this section the expression “award” includes an interim award.

Power of
judge to
refer to
registrar or
referee.

90.—(1) Subject to county court rules, the judge may refer to the registrar or a referee for inquiry and report—

(a) any proceedings which require any prolonged examination of documents or any scientific or local investigation which cannot, in the opinion of the judge, conveniently be made before him;

- (b) any proceedings where the question in dispute consists wholly or in part of matters of account;
- (c) with the consent of the parties, any other proceedings;
- (d) subject to any right to have particular cases tried with a jury, any question arising in any proceedings.

PART III.
—*cont.*

(2) Where any proceedings or question are referred as aforesaid, the judge may direct how the reference shall be conducted, and may remit any report for further inquiry and report, and on consideration of any report or further report may give such judgment or make such order in the proceedings as may be just.

(3) The judge may, after deciding or reserving any question of liability, refer to the registrar any mere matter of account which is in dispute between the parties, and after deciding the question of liability, may give judgment on the registrar's report.

Juries.

91.—(1) In the following proceedings in a county court the trial shall be without a jury, namely—

Trial by
jury.

- (a) admiralty proceedings;
- (b) proceedings arising under the Rent and Mortgage Interest Restrictions Acts, 1920 to 1933;
- (c) appeals under section twenty-two of the Housing Act, 1930.

20 & 21
Geo. 5. c. 39.

(2) In all other proceedings in a county court the trial shall be without a jury unless the court otherwise orders on an application made in that behalf by any party to the proceedings in such manner and within such time before the trial as may be prescribed.

(3) In a case where the court is satisfied on any such application—

- (a) that a charge of fraud against the party making the application is in issue; or
- (b) that a claim in respect of libel, slander, malicious prosecution, false imprisonment, seduction or breach of promise of marriage is in issue;

the court shall order the proceedings to be tried with a jury, unless the court is of opinion that the trial requires

PART III. any prolonged examination of documents or accounts or
—cont. any scientific or local investigation which cannot conveniently be made with a jury.

(4) In any other case the court on any such application may, as it thinks fit, either order the proceedings to be tried with a jury or dismiss the application.

Summoning
of jurors.

92.—(1) On the first occasion in any year on which an order is made by a county court for the trial of any proceedings with a jury, the registrar of that court shall obtain copies of the last published registers of electors for all such registration units as are comprised in whole or in part within the district of the court.

(2) For the purpose of complying with the order aforesaid, and with any other order made by the court during the same year for the trial of proceedings with a jury, the registrar shall cause the prescribed number of persons, being persons who are shown by the registers aforesaid to be residing or occupying property within the district of the court and who are marked in those registers as jurors or special jurors in pursuance of section one of the Juries Act, 1922, to be summoned to attend on the jury at the time and place specified in the summons :

12 & 13
Geo. 5. c. 11.

Provided that no person shall be summoned to attend on a jury in the same county court more than twice in the same year.

(3) A summons issued in pursuance of this section may be served either by post or in such other manner as may be prescribed.

(4) If any person duly summoned to attend on a jury in a county court fails to attend at the time and place mentioned in the summons, he shall forfeit such sum not exceeding five pounds as the court may direct :

Provided that any person summoned as aforesaid to attend on a jury shall be excused from attending on that jury if he satisfies the court in the prescribed manner—

(a) that he has within the six months next before the service of the summons attended on a jury in some other court; or

. b) that there is any other good reason why he should be excused from attending on the jury.

93.—(1) At any county court where proceedings are to be tried with a jury, eight jurymen shall be impanelled and sworn as occasion requires to give their verdicts in the proceedings brought before them, and being once sworn need not be re-sworn in each trial.

PART III.
—cont.
Impanelling,
swearing,
verdict and
remunera-
tion of jury.

(2) Any party to any such proceedings shall be entitled to challenge all or any of the jurors in like manner as he would be entitled in the High Court.

(3) A jury shall be required to give an unanimous verdict.

(4) The amount to be paid to the registrar in pursuance of county court rules for payment of a jury shall be eight shillings.

94. Where, for the purpose of disposing of any proceedings which are being tried in a county court by the judge with a jury, it is necessary to ascertain the law of any other country which is applicable to the facts of the case, any question as to the effect of the evidence given with respect to that law shall, instead of being submitted to the jury, be decided by the judge alone.

Duty of
judge to
determine
foreign law
in jury
trials.

Judgments and Orders.

95. Every judgment and order of a county court shall, except as provided by this or any other Act or county court rules, be final and conclusive between the parties.

Finality of
judgments
and orders.

96.—(1) Where a judgment is given or an order is made by a county court under which a sum of money of any amount is payable, whether by way of satisfaction of the claim or counterclaim in the proceedings or by way of costs or otherwise, the court may, as it thinks fit, order the money to be paid either—

Payment of
judgments
and orders.

(a) in one sum, whether forthwith or within such period as the court may fix; or

(b) by such instalments payable at such times as the court may fix.

(2) If at any time it appears to the satisfaction of the judge that any party to any proceedings is unable from any cause to pay any sum recovered against him (whether by way of satisfaction of the claim or counterclaim in the proceedings or by way of costs or otherwise) or any instalment thereof, the judge may, in his discretion, suspend or stay any judgment or order given or made in

PART III. the proceedings for such time and on such terms as the
—*cont.* judge thinks fit, and so from time to time until it appears
that the cause of inability has ceased.

(3) All moneys payable under a judgment or order shall be paid into court:

Provided that where no order is made as to payment by instalments, the money shall, if the court so directs, be paid by one party to the other party or his solicitor, subject to the lien, if any, of that solicitor.

Set-off in
cases of
cross judg-
ments in
county
courts and
High Court.

97.—(1) Where one person has obtained a judgment or order in a county court against another person, and that other person has obtained a judgment or order against the first-mentioned person in the same or in another county court or in the High Court, either such person may, in accordance with rules of court, give notice in writing to the court or the several courts as the case may be, and may apply to the court or any of the said courts in accordance with rules of court for leave to set off any sums, including costs, payable under the several judgments or orders.

(2) Upon any such application, the set-off may be allowed in accordance with the practice for the time being in force in the High Court as to the allowance of set-off and in particular in relation to any solicitor's lien for costs.

(3) Where the cross judgments or orders have not been obtained in the same court, a copy of the order made on any such application shall be sent by the proper officer of the court to which the application is made to the proper officer of the other court.

Register of
judgments
and orders.

98.—(1) A register of—

(a) every judgment (other than a judgment in admiralty proceedings) entered in a county court for the sum of ten pounds and upwards; and

(b) every such other judgment or order (including a judgment or order in admiralty proceedings) as may be prescribed;

shall be kept in such manner and in such place as may be prescribed.

(2) The Lord Chancellor may make regulations as to the keeping of the said register, and in this section the expression "prescribed" means prescribed by those regulations.

(3) The power of the Lord Chancellor to make the said regulations shall include power to make provision by the regulations—

PART III.
—cont.

(a) for exempting from registration any judgment or order which is proved, in such manner and within such time as may be prescribed, to have been satisfied or complied with either wholly or to such an extent that the sum (if any) owing in respect thereof is less than ten pounds; and

(b) for cancelling the registration of any judgment or order which is proved in manner aforesaid to have been wholly satisfied or complied with.

(4) There shall be charged to persons desirous of inspecting the said register such fees for the inspection thereof as may be fixed by the Lord Chancellor with the concurrence of the Treasury.

(5) The proceeds of the said fees shall be applied in such manner as the Treasury may direct in paying the expenses incurred in maintaining the register, and the surplus thereof, after providing for the payment of those expenses, shall be paid to the credit of the Consolidated Fund.

General Rules of Procedure.

99.—(1) The rule committee hereinafter mentioned may make county court rules regulating the practice of the courts and forms of proceedings therein and prescribing scales of costs to be paid to counsel and solicitors. County court rules.

(2) The power of making county court rules shall extend to all matters of procedure or practice, or matters relating to or concerning the effect or operation in law of any procedure or practice, in any case within the cognizance of county courts as to which rules of the Supreme Court have been or might lawfully be made for cases within the cognizance of the High Court.

(3) Without prejudice to the generality of the foregoing provisions of this section, the power of making county court rules shall extend to—

(a) prescribing the court in which proceedings are to be commenced and the procedure to be adopted where proceedings are commenced in one court which should under the rules have been commenced in another court;

PART III
—cont.24 & 25
Geo. 5. c. 17.

- (b) prescribing the circumstances in which proceedings may be transferred from one court to another and the procedure consequent on any such transfer;
- (c) regulating or providing for any matters which were regulated or provided for by the county court rules in force on the seventeenth day of May, nineteen hundred and thirty-four;
- (d) regulating or providing for any other matter which was regulated or provided for, before the date on which the County Courts (Amendment) Act, 1934, came into operation, by the enactments set out in the Third Schedule to this Act.

(4) The rules made under paragraphs (a) and (b) of the last foregoing subsection may make different provision as respects different kinds of proceedings and may make special provision as respects proceedings in courts for districts in or adjacent to the County of London and as respects proceedings by or against judges and officers of the courts.

(5) The rule committee shall consist of five judges of county courts appointed by the Lord Chancellor and three other persons so appointed, one of whom shall be a barrister, one a registrar and the other a solicitor.

(6) The Lord Chancellor may from time to time fill up any vacancies among the members of the rule committee.

(7) Any rules made by the rule committee shall be certified under the hands of the members of the committee, or any three or more of them, and submitted to the Lord Chancellor, who may allow or disallow or alter them.

(8) Any rules so made, as allowed or altered by the Lord Chancellor, shall (subject to the concurrence of the authority for the time being empowered to make rules of court under the Supreme Court of Judicature (Consolidation) Act, 1925, as provided in section two hundred and six of that Act) come into force on such day as the Lord Chancellor may direct.

Application
of practice
of High
Court.

100. In any case not expressly provided for by or in pursuance of this Act, the general principles of practice in the High Court may be adopted and applied to proceedings in a county court.

PART IV.

REPLEVIN.

101.—(1) The sheriff shall have no power or responsibility with respect to replevin bonds or replevins, but the registrar for the district in which any goods subject to replevin are taken shall have power, subject to the provisions of this Part of this Act, to approve of replevin bonds and to grant replevins and to issue all necessary process in relation thereto, and any such process shall be executed by a bailiff of the court.

Replevins
to be
granted by
registrar
on security
being given.

(2) The registrar shall, at the instance of the party whose goods have been seized, cause the goods to be replevied to that party on his giving such security as is provided in this Part of this Act.

102.—(1) It shall be a condition of any security given under the last foregoing section of this Act that the replevisor will—

Amount and
conditions
of security.

- (a) commence an action of replevin against the seisor in the High Court within one week from the date when the security is given; or
- (b) commence such an action in a county court within one month from the said date.

(2) In either case—

- (a) the replevisor shall give security, to be approved by the registrar having power in the matter, for such an amount as the registrar thinks sufficient to cover both the probable costs of the action and either—

- (i) the alleged rent or damage in respect of which the distress has been made; or

- (ii) in a case where the goods replevied have been seized otherwise than under colour of distress, the value of the goods; and

- (b) it shall be a further condition of the security that the replevisor will—

- (i) prosecute the action with effect and without delay and;

- (ii) make a return of the goods, if the return thereof is ordered in the action.

PART IV.
—*cont.*

(3) In a case where the action is to be brought in the High Court, it shall be a further condition of the security that the replevisor will, unless he obtains judgment by default, prove to that court that he had good ground for believing either—

(a) that the title to some hereditament, the rent or value whereof exceeded twenty pounds by the year, or to some toll, market, fair or franchise was in question; or

(b) that the alleged rent or damage in respect of which the distress was made, or the value of the goods seized, exceeded twenty pounds.

Removal of
action of
replevin to
High Court
at instance
of defend-
ant.

103.—(1) Any action of replevin brought in a county court shall be removed into the High Court by writ of certiorari if the defendant makes an application in that behalf to the High Court or a judge thereof and gives security approved by a master of the Supreme Court for such amount, not exceeding one hundred and fifty pounds, as the master thinks fit.

(2) It shall be a condition of any security given under this section that the defendant will defend the action with effect, and will, unless the action is discontinued or dismissed for want of prosecution, prove before the High Court that the defendant had good ground for believing either—

(a) that the title to some hereditament, the rent or value whereof exceeded twenty pounds by the year, or to some toll, market, fair or franchise was in question; or

(b) that the alleged rent or damage in respect of which the distress was made, or the value of the goods seized, exceeded twenty pounds.

(3) Where an action is removed to the High Court under this section, the provisions of section seventy-three of this Act shall apply as if the action had been transferred.

PART V.

APPEALS, CERTIORARI, PROHIBITION AND MANDAMUS.

General.

104. Subject to the provisions of any other Act relating to county courts, no judgment or order of any judge of county courts, nor any proceedings brought before him or pending in his court, shall be removed by appeal, motion, certiorari or otherwise into any other court whatever, except in the manner and according to the provisions in this Act mentioned.

Removal of actions from county court prohibited except as provided in Act.

Appeals.

105. If any party to any proceedings in a county court is dissatisfied with the determination or direction of the judge in point of law or equity or upon the admission or rejection of any evidence, the party aggrieved by the judgment, direction, decision or order of the judge may appeal therefrom to the Court of Appeal in such manner and subject to such conditions as may be for the time being provided by the rules of the Supreme Court:

General provisions as to appeals.

Provided that, without the leave of the judge, there shall be no appeal—

- (a) in any action founded on contract or on tort (other than an action for the recovery of land or an action in which the title to any hereditament has come in question) where the debt or damage claimed does not exceed twenty pounds; nor
- (b) in any action of replevin where the amount of rent, or the damage or value of the goods seized, does not exceed twenty pounds; nor
- (c) in proceedings in interpleader where the money claimed, or the value of the goods or chattels claimed or the proceeds thereof, does not exceed twenty pounds.

106.—(1) If any party to any admiralty proceedings in a county court is dissatisfied with a determination of the judge on a question of fact, the party aggrieved by the judgment or order of the judge may appeal therefrom to the Court of Appeal:

Appeals in admiralty proceedings.

PART V.
—*cont.*

Provided that, without the leave of the judge, there shall be no appeal under this subsection unless the amount claimed in the proceedings exceeds one hundred pounds.

(2) Nothing in the foregoing provisions of this section shall be taken to affect the right of any party to admiralty proceedings in a county court to appeal to the Court of Appeal under the last foregoing section of this Act, and any such party may appeal under that section in like manner and subject to the like conditions as a party to an action founded on contract or tort.

(3) On an appeal by a party to any admiralty proceedings, the Court of Appeal, if it appears to it expedient that any sale ordered to be made of the vessel, aircraft or property to which the proceedings relate should be conducted in the High Court instead of in the county court, may direct the transfer of the proceedings for sale, with or without the transfer of the subsequent proceedings, to the High Court.

(4) Where, on an appeal by a party to any admiralty proceedings which have been heard in a county court with the assistance of assessors, any party makes application to the Court of Appeal in that behalf, the Court shall summon Trinity masters to assist on the hearing of the appeal if the Court is of opinion that such assistance is necessary or desirable.

Agreement
not to
appeal.

107.—(1) No appeal shall lie from any judgment, direction, decision or order of a judge of county courts if, before the judgment, direction, decision or order is given or made, the parties agree, in writing signed by themselves or their solicitors or agents, that it shall be final.

(2) No such agreement shall require a stamp.

Judge's note
on appeal.

108.—(1) At the hearing of any proceedings in a county court in which there is a right of appeal, the judge shall, at the request of any party, make a note—

- (a) of any question of law or equity raised at the hearing; and
- (b) of the facts in evidence in relation thereto; and
- (c) of his decision thereon and of his determination of the proceedings.

(2) Where such a note has been taken, the judge shall (whether notice of appeal has been served or not), on the application of any party to the proceedings, and on payment by that party of such fee as may be prescribed by the fees orders, furnish him with a copy of the note, and shall sign the copy, and the copy so signed shall be used at the hearing of the appeal.

PART V.
—cont.

109. On the hearing of an appeal, the Court of Appeal may draw any inference of fact and either—

Powers of
Court of
Appeal on
appeal from
county
courts.

- (a) order a new trial on such terms as the court thinks just; or
- (b) order judgment to be entered for any party; or
- (c) make a final or other order on such terms as the court thinks proper to ensure the determination on the merits of the real questions in controversy between the parties.

110. No appeal shall lie from the decision of the Court of Appeal on any appeal from a county court on a point of law arising in any probate proceedings.

Decision of
Court of
Appeal on
probate
appeals to
be final.

Certiorari, Prohibition and Mandamus.

111.—(1) The High Court or a judge thereof may order the removal into the High Court, by writ of certiorari or otherwise, of any proceedings commenced in a county court, if the High Court or judge thereof thinks it desirable that the proceedings should be heard and determined in the High Court.

Certiorari.

(2) Where any proceedings are removed into the High Court under this section, the provisions of section seventy-three of this Act shall apply as if the action had been transferred.

(3) Any such removal shall be upon such terms as to payment of costs, giving security or otherwise as the High Court or a judge thereof thinks fit to impose.

112.—(1) Where an application is made to the High Court or a judge thereof for a writ of prohibition addressed to any county court, the matter shall be finally disposed of by order, and no pleadings or further proceedings in prohibition shall be allowed.

Prohibition.

PART V.
—cont.

(2) Upon any such application, the judge of the county court shall not be served with notice thereof, and shall not, except by the order of a judge of the High Court—

(a) be required to appear or be heard thereon; or

(b) be liable to any order for the payment of the costs thereof;

but the application shall be proceeded with and heard in the same manner in all respects as an appeal duly brought from a decision of the judge, and notice of the application shall be given to or served upon the same parties as in the case of an order made or refused by a judge in a matter within his jurisdiction.

Stay of
proceedings
in case of
certiorari
or prohibi-
tion.

113.—(1) The grant by the High Court or a judge thereof of an order or summons to show cause why a writ of certiorari or prohibition should not issue to a county court shall, if the High Court or judge thereof so directs, operate as a stay of the proceedings in question until the determination of the order or summons, or until the High Court or judge thereof otherwise orders.

(2) While any proceedings are stayed as aforesaid, the judge of the county court shall from time to time adjourn the hearing thereof to such day as he thinks fit.

Order in
lieu of
mandamus.

114.—(1) No writ of mandamus shall issue to a judge or officer of a county court for refusing to do any act relating to the duties of his office.

(2) Any party requiring such an act to be done may apply to the High Court upon affidavit for an order or summons calling upon the judge or officer, and also the party to be affected by the act, to show cause why the act should not be done.

(3) If after the service of such an order or summons good cause is not shown, the High Court may by order direct the act to be done and the judge or officer of the county court, upon being served with the order, shall obey it on pain of attachment.

Refusal of
writ to be
final.

115. Where the High Court or a judge thereof has refused to grant a writ of certiorari or prohibition to a county court, or an order under the last foregoing section of this Act, no other court or judge shall grant the writ or order :

Provided that nothing in this section shall—

- (a) affect any right of appeal from the decision of the High Court or a judge thereof to the Court of Appeal, or any right of appeal from the decision of a judge of the High Court to the High Court; or
- (b) prevent a second application being made for the writ or order on grounds different from those on which the first application was founded.

PART V.
—cont.

PART VI.

EXECUTION AND COMMITTALS.

Warrants of Execution.

116.—(1) Any sum of money payable under a judgment or order of a county court may be recovered, in case of default or failure of payment thereof forthwith or at the time or times and in the manner thereby directed, by execution against the goods and chattels of the party against whom the judgment or order was obtained.

Execution
of judgments or
orders for
sum of
money.

(2) The registrar, on the application of the party prosecuting any such judgment or order, shall issue a warrant of execution in the nature of a writ of fieri facias whereby the registrar shall be empowered to levy or cause to be levied by distress and sale of the goods and chattels, wherever they may be found within the district of the court (whether within or without a franchise as defined in section thirty-four of the Sheriffs Act, 1887), the money payable under the judgment or order and the costs of the execution.

50 & 51 Vict.
c. 55.

(3) The precise time of the making of an application to the registrar to issue such a warrant shall be entered by him in the book prescribed for the purpose under section twenty-three of this Act, and on the warrant, and when more than one such warrant is issued they shall be executed in the order of the times so entered.

(4) It shall be the duty of every constable within his jurisdiction to assist in the execution of every such warrant.

117.—(1) Where the court has made an order for payment of any sum of money by instalments, execution on the order shall not be issued until after the default in payment of some instalment according to the order.

Execution
of orders for
payment by
instalments.

PART VI.
—cont.

(2) On any such default, execution or successive executions may issue for the whole of the said sum of money and costs then remaining unpaid, or for such part thereof as the court may order, either at the time of making the original order or at any subsequent time.

Execution
to be
superseded
on payment.

118.—(1) In or upon every warrant of execution issued from a county court against the goods or chattels of any person, the registrar shall cause to be inserted or endorsed the sum of money and costs adjudged, and the fees for the execution of the warrant.

(2) If the person against whom the execution is issued, before the actual sale of the goods and chattels, pays or causes to be paid or tendered to the registrar of the court from which the warrant issued, or to the bailiff holding the warrant, the sum of money and costs inserted or endorsed as aforesaid, or such part thereof as the person entitled thereto agrees to accept in full satisfaction, together with the fees inserted or endorsed as aforesaid, the execution shall be superseded, and the goods and chattels of the first-mentioned person shall be discharged and set at liberty.

Power to
suspend
execution.

119. If at any time it appears to the satisfaction of the judge that any party to any proceedings is unable from any cause to pay any sum recovered against him (whether by way of satisfaction of the claim or counterclaim in the proceedings or by way of costs or otherwise), or any instalment thereof, the judge may, in his discretion, stay any execution issued in the proceedings for such time and on such terms as the judge thinks fit, and so from time to time until it appears that the cause of inability has ceased.

Execution
of warrants
of possession.

120. For the purpose of executing a warrant to give possession of any premises, it shall not be necessary to remove any goods or chattels from those premises.

Seizure of Goods, &c., and Custody thereof.

Goods which
may be
seized.

121. Every bailiff or officer executing any warrant of execution issued from a county court against the goods or chattels of any person may by virtue thereof seize—

- (a) any of the goods and chattels of that person, except the wearing apparel and bedding of that person or his family, and the tools and

implements of his trade, to the value of five pounds, which shall to that extent be protected from seizure; and

PART VI.
—cont.

- (b) any money, bank notes, bills of exchange, promissory notes, bonds, specialties or securities for money belonging to that person.

122. Goods seized in execution under process of a county court shall, until the sale thereof—

Custody
of goods
seized.

- (a) be deposited by the bailiff in some fit place; or
(b) remain in the custody of a fit person approved by the registrar to be put in possession by the bailiff; or
(c) be safeguarded in such other manner as the registrar directs.

123. The registrar shall hold any bills of exchange, promissory notes, bonds, specialties or other securities for money seized in execution under process of a county court as security for the amount directed to be levied by the execution, or for so much thereof as has not been otherwise levied or raised, for the benefit of the plaintiff, and the plaintiff may sue in the name of the defendant, or in the name of any person in whose name the defendant might have sued, for the recovery of the sum secured or made payable thereby, when the time of payment thereof arrives.

Disposal
of bills of ex-
change, &c.
seized.

124. If any person rescues or attempts to rescue any goods seized in execution under process of a county court, he shall be liable, either on an order made by the judge in that behalf or on summary conviction, to a fine not exceeding five pounds, and any bailiff of the court may take him into custody, with or without warrant, and bring him before the judge.

Penalty for
rescuing
goods seized.

Sale of goods seized.

125. No goods seized in execution under process of a county court shall be sold for the purpose of satisfying the warrant of execution until the expiration of a period of at least five days next following the day on which the goods have been so seized unless—

Period to
elapse
before sale.

- (a) the goods are of a perishable nature; or
(b) the person whose goods have been seized so requests in writing.

PART VI.

—*cont.*

Goods not to
be sold except
by brokers or
appraisers.

126. No goods seized in execution under process of a county court shall be sold for the purpose of satisfying the warrant of execution except by one of the brokers or appraisers appointed under this Part of this Act.

Appoint-
ment of
brokers,
appraisers,
&c.

127.—(1) The registrar may from time to time as he thinks fit appoint such number of persons for keeping possession, and such number of sworn brokers and appraisers for the purpose of selling or valuing any goods, chattels or effects seized in execution under process of the court, as appears to him to be necessary.

(2) The registrar may direct security to be taken from any broker, appraiser or other person so appointed for such sum and in such manner as he thinks fit for the faithful performance of his duties without injury or oppression.

(3) The judge or registrar may dismiss any broker, appraiser or other person so appointed.

(4) There shall be payable to brokers and appraisers so appointed in respect of their duties, out of the produce of goods distrained or sold, such fees as may be prescribed by the fees orders.

Power to
authorise
bailiffs to
act as
brokers and
appraisers.

128.—(1) The judge may appoint in writing any bailiff of the court to act as a broker or appraiser for the purpose of selling or valuing any goods, chattels or effects seized in execution under process of the court.

(2) A bailiff so appointed may, without other licence in that behalf, perform all the duties which sworn brokers or appraisers may perform under this Act.

Sales under
executions
to be public
unless
otherwise
ordered.

129.—(1) Where any goods are to be sold under an execution for a sum exceeding twenty pounds (including legal incidental expenses), the sale shall, unless the court from which the warrant of execution issued otherwise orders, be made by public auction and not by bill of sale or private contract, and shall be publicly advertised by the registrar on, and during three days next preceding, the day of sale.

(2) Where any goods are seized in execution and the registrar has notice of another execution or other executions, the court shall not consider an application for leave

to sell privately until the prescribed notice has been given to the other execution creditor or creditors, who may appear before the court and be heard on the application.

PART VI.
—*cont.*

130. Where any goods in the possession of an execution debtor at the time of seizure by a registrar or other officer charged with the enforcement of a warrant or other process of execution issued from a county court are sold by that registrar or other officer without any claim having been made to them—

Protection
of registrar
selling
goods under
execution
without
notice of
claim by
third party.

- (a) the purchaser of the goods so sold shall acquire a good title to those goods; and
- (b) no person shall be entitled to recover against the registrar or other officer, or anyone lawfully acting under his authority, for any sale of the goods, or for paying over the proceeds thereof prior to the receipt of a claim to the said goods, unless it is proved that the person from whom recovery is sought had notice, or might by making reasonable inquiry have ascertained, that the goods were not the property of the execution debtor:

Provided that—

- (i) nothing in this section shall affect the right of any claimant, who may prove that at the time of sale he had a title to any goods so seized and sold, to any remedy to which he may be entitled against any person other than the registrar or other officer; and
- (ii) the provisions of this section shall have effect subject to the provisions of sections forty and forty-one of the Bankruptcy Act, 1914, and sections two hundred and sixty-eight and two hundred and sixty-nine of the Companies Act, 1929.

4 & 5 Geo. 5.
c. 59.

19 & 20
Geo. 5. c. 23.

Claims in respect of Goods seized.

131.—(1) When a writ against the goods of any person has issued from the High Court and a warrant against the goods of the same person has issued from a county court, the right to the goods seized shall be determined by the priority of the time of the delivery

Priority of
High Court
and county
court
executions.

PART VI.
—cont.

of the writ to the sheriff to be executed, or of the application to the registrar for the issue of the warrant to be executed.

(2) A sheriff shall on demand inform a registrar of a county court, by writing signed by any clerk in the office of the under-sheriff, of the precise time of the delivery of any such writ to him, and a bailiff of a county court shall on demand show his warrant to any sheriff's officer.

(3) Any writing purporting to be signed as aforesaid and the endorsement on any such warrant shall respectively be sufficient justification to any registrar or sheriff acting thereon.

Sale of
goods where
claim made
thereto.

132.—(1) Where a claim is made to or in respect of any goods seized in execution under process of a county court, the claimant may—

(a) deposit with the bailiff either—

(i) the amount of the value of the goods claimed; or

(ii) the sum which the bailiff is allowed to charge as costs for keeping possession of the goods until the decision of the judge can be obtained on the claim; or

(b) give the bailiff in the prescribed manner security for the value of the goods claimed.

(2) For the purpose of this section, the amount of the value of the goods claimed shall, in case of dispute, be fixed by appraisalment, and where that amount is deposited as aforesaid it shall be paid by the bailiff into court to abide the decision of the judge upon the claim.

(3) In default of the claimant complying with the foregoing provisions of this section, the bailiff shall sell the goods as if no such claim had been made, and shall pay into court the proceeds of the sale to abide the decision of the judge.

Inter-
pleader by
registrar.

133.—(1) If a claim is made to or in respect of any goods or chattels seized in execution under process of a county court, or in respect of the proceeds or value thereof, the registrar may, as well before as after any action brought against him, issue a summons calling before the court the party at whose instance the process issued and the party making the claim.

PART VI.
—cont.

(2) Upon the issue of the summons, any action brought in any county court or other court in respect of the claim or of any damage arising out of the execution of the warrant shall be stayed.

(3) On the hearing of the summons, the judge shall adjudicate upon the claim, and shall also adjudicate between the parties or either of them and the registrar upon any claim to damages arising or capable of arising out of the execution of the warrant by the registrar, and shall make such order in respect of any such claim and the costs of the proceedings as he thinks fit.

134.—(1) Section one of the Landlord and Tenant Act, 1709, shall not apply to goods seized in execution under process of a county court, but the following provisions of this section shall apply in substitution therefor.

Claims for rent where goods seized in execution. 8 Anne c. 18.

(2) The landlord of any tenement in which any goods are seized as aforesaid may claim the rent of the tenement in arrear at the date of the seizure, at any time within the five days next following that date, or before the removal of the goods, by delivering to the bailiff or officer making the levy a claim in writing, signed by himself or his agent, stating—

- (a) the amount of rent claimed to be in arrear; and
- (b) the period in respect of which the rent is due.

(3) Where such a claim is made, the bailiff or officer making the levy shall in addition thereto distrain for the rent so claimed and the cost of the distress, and shall not, within five days next after the distress, sell any part of the goods seized, unless—

- (a) the goods are of a perishable nature; or
- (b) the person whose goods have been seized so requests in writing.

(4) The bailiff shall afterwards sell under the execution and distress such of the goods as will satisfy—

- (a) first, the costs of and incidental to the sale;
- (b) next, the claim of the landlord not exceeding—
 - (i) in a case where the tenement is let by the week, four weeks' rent;

PART VI.
—cont.

- (ii) in a case where the tenement is let for any other term less than a year, the rent of two terms of payment;
- (iii) in any other case, one year's rent; and
- (c) lastly, the amount for which the warrant of execution issued.

(5) If any replevin is made of the goods seized, the bailiff shall nevertheless sell such portion thereof as will satisfy the costs of and incidental to the sale under the execution and the amount for which the warrant of execution issued.

(6) In any event the surplus of the sale, if any, and the residue of the goods shall be returned to the execution debtor.

(7) The fees of the registrar and broker for keeping possession, appraisalment and sale under any such distress shall be the same as would have been payable if the distress had been an execution of the court, and no other fees shall be demanded or taken in respect thereof.

(8) Nothing in this section shall affect the provisions of section thirty-five of the Bankruptcy Act, 1914, except that the reference therein to section one hundred and sixty of the County Courts Act, 1888, shall be construed as a reference to this section.

Transfer of Proceedings for Execution.

Execution
out of juris-
diction of
court.

135.—(1) Where a warrant of execution has been issued from a county court (hereafter in this section referred to as a “home court”) against the goods and chattels of any person and the goods and chattels are out of the jurisdiction of that court, the registrar of that court may send the warrant of execution to the registrar of any other county court within the jurisdiction of which the goods and chattels are or are believed to be, with a warrant thereon endorsed or thereto annexed requiring execution of the original warrant.

(2) On the receipt of the warrant, the registrar of the other county court shall act in all respects as if the original warrant of execution had been issued by the

court of which he is registrar and shall within the prescribed time—

PART VI.
—cont.

(a) report to the registrar of the home court what he has done in the execution of the warrant; and

(b) pay over all moneys received in pursuance of the warrant.

(3) Where a warrant of execution is sent by the registrar of a home court to the registrar of another court for execution under the provisions of this section, the judge of that other court shall have the same power as the judge of the home court of staying the execution under section one hundred and nineteen of this Act as respects any goods or chattels within the jurisdiction of that other court.

136.—(1) A judge of the High Court, if satisfied that a person, against whom judgment for an amount exceeding twenty pounds has been obtained (whether by way of satisfaction of a claim or counterclaim or by way of costs or otherwise) in a county court, has no goods or chattels which can be conveniently seized to satisfy the judgment, may, if he thinks fit, and on such terms as to costs as he may direct, order a writ of certiorari to issue to remove the judgment into the High Court.

Removal of
judgment to
High Court
for purpose
of execu-
tion.

(2) When a judgment is so removed, it shall have the same force and effect and the same proceedings may be had thereon as if it were a judgment of the High Court:

Provided that no action shall be brought upon the judgment.

(3) This section applies to orders obtained in a county court as it applies to judgments so obtained.

137. Where a vessel, aircraft or property would or might be sold under an execution to enforce a judgment or order given or made by a county court in admiralty proceedings, and the owner of the vessel, aircraft or property desires that the sale should be conducted in the High Court instead of in the county court, he shall be entitled, on giving security for costs, and subject to such other provisions as may be prescribed, to obtain an order of the county court for transfer of the proceedings for sale, with or without (as the judge of the county court thinks

Transfer of
execution
in admiralty
proceedings.

PART VI. fit) the transfer of any subsequent proceedings, to the
—cont. High Court.

Transfer
from High
Court of
applications
to attach
debts or
levy execu-
tion against
member of
firm.

138.—(1) Where an application is made to the High Court—

- (a) for the attachment of a debt not exceeding one hundred pounds to answer a judgment or order; or
- (b) for leave to issue execution for a debt not exceeding one hundred pounds against a person as being a member of a firm against which a judgment or order has been obtained;

the High Court or a judge thereof may make an order either—

- (i) transferring the matter to; or
- (ii) directing that any issue necessary for determining the matter shall be tried in;

such county court to be named in the order as the court or judge may deem the most convenient to the parties.

(2) Where, under the foregoing provisions of this section, an order is made directing an issue to be tried in a county court, the order shall define the issue to be tried, and any party may lodge or cause to be lodged the order, together with the affidavits (if any) filed in matter, and such other documents (if any) as the High Court or judge may direct, with the registrar of the county court named in the order.

(3) On the documents aforesaid being so lodged the issue shall, subject to county court rules, be tried in the county court so named, and the judge of that county court, after the issue has been so tried, shall certify the result of the trial and send his certificate to the High Court, together with the documents aforesaid and any report which he may think fit to make as to costs or otherwise.

Committals.

Power to
commit for
contempt.

139. If any person—

- (a) wilfully insults the judge of a county court, or any juror or witness, or any officer of the

court during his sitting or attendance in court, or in going to or returning from the court; or

PART VI.
—cont.

- (b) wilfully interrupts the proceedings of a county court or otherwise misbehaves in court;

any officer of the court, with or without the assistance of any other person, may, by order of the judge, take the offender into custody and detain him until the rising of the court, and the judge may, if he thinks fit—

- (i) by a warrant under his hand commit the offender for any period not exceeding seven days to any prison to which he has power to commit; or
- (ii) impose upon the offender a fine not exceeding five pounds for every offence.

140.—(1) Whenever any order or warrant for the committal of any person to prison is made or issued by a county court (whether in pursuance of this or any other Act or of county court rules), the order or warrant shall be directed to the registrar of the court, who shall thereby be empowered to take the body of the person against whom the order is made or warrant issued.

Issue and
execution of
orders of
committal.

(2) It shall be the duty of every constable within his jurisdiction to assist in the execution of every such order or warrant.

(3) The governor of the prison mentioned in any such order or warrant shall be bound to receive and keep the person therein mentioned until he is lawfully discharged.

141. Any person committed to prison by the judge of any county court, in pursuance of this or any other Act or of county court rules, shall be committed to such prison as may from time to time be directed in the case of that court by order of the Secretary of State.

Prisons to
which com-
mittals may
be made.

142. If at any time it appears to the satisfaction of a judge of a county court that any debtor arrested or confined in prison by order of the court is unable from any cause to pay any sum recovered against him (whether by way of satisfaction of a claim or counterclaim or by way of costs or otherwise), or any instalment thereof, and ought to be discharged, the judge may order his discharge upon such terms (including liability to re-arrest if the terms are not complied with) as the judge thinks fit.

Power of
judge to
order dis-
charge.

PART VI.

—cont.

Execution
of com-
mittal
orders out
of jurisdic-
tion of
court.

143.—(1) Where any order or warrant for the committal of any person to prison has been made or issued (whether in pursuance of this or any other Act or of county court rules) by a county court (hereafter in this section referred to as a “home court”) and that person is out of the jurisdiction of that court, the registrar may send the order or warrant to the registrar of any other county court within the jurisdiction of which that person is or is believed to be, with a warrant thereon endorsed or thereto annexed requiring execution of the original order or warrant.

(2) On receipt of the warrant, the registrar of the other county court shall act in all respects as if the original order or warrant had been issued by the court of which he is registrar and shall within the prescribed time—

(a) report to the registrar of the home court what he has done in the execution of the order or warrant; and

(b) pay over all moneys received in pursuance of the order or warrant.

(3) Where a person is apprehended under the order or warrant, he shall be forthwith conveyed, in custody of the officer apprehending him, to the prison of the court within the jurisdiction of which he was apprehended and kept therein—

(a) in a case where he is apprehended under a warrant of attachment, until further order of the home court; and

(b) in a case where he is apprehended under any other order or warrant, until the expiration of the period mentioned in the order or warrant, unless sooner discharged by law.

(4) It shall be the duty of every constable within his jurisdiction to assist in the execution of any such order or warrant.

32 & 33
Vict. c. 62.

(5) Where an order of commitment under the Debtors Act, 1869, is sent by the registrar of a home court to the registrar of another court for execution under the provisions of this section, the judge of that other court shall have the same power as the judge of the home court of ordering the discharge of the debtor under the last foregoing section of this Act.

Responsibility and Protection of Officers.

PART VI.

—cont.

144. Every registrar shall be responsible for the acts and defaults of himself and of the bailiffs appointed to assist him in like manner as the sheriff of any county in England is responsible for the acts and defaults of himself and his officers.

Registrar to have same responsibility as sheriff.

145.—(1) Where a bailiff of a county court, being employed to levy any execution against goods and chattels, loses the opportunity of levying the execution by reason of neglect, connivance or omission, any party aggrieved thereby may complain to the judge of that court.

Liability of bailiff for neglect to levy an execution.

(2) On any such complaint the judge, if the neglect, connivance or omission is proved to his satisfaction, shall order the bailiff to pay such damages as it appears that the complainant has sustained by reason thereof, not exceeding in any case the sum for which the execution issued.

146. No officer of a county court in executing any warrant of a court, and no person at whose instance any such warrant is executed, shall be deemed a trespasser by reason of any irregularity or informality—

Irregularity in executing warrants.

- (a) in any proceeding on the validity of which the warrant depends; or
- (b) in the form of the warrant or in the mode of executing it;

but any person aggrieved may bring an action for any special damage sustained by him by reason of the irregularity or informality against the person guilty thereof:

Provided that no costs shall be recovered in such an action unless the damages awarded exceed forty shillings.

147.—(1) No action shall be commenced against any bailiff for anything done in obedience to a warrant issued by the registrar, unless—

Actions against bailiffs acting under warrants.

- (a) a demand for inspection of the warrant and for a copy thereof is made or left at the office of the bailiff by the party intending to bring the action, or his solicitor or agent, in writing signed by the person making the demand; and
- (b) the bailiff refuses or neglects to comply with the demand within six days after it is made.

PART VI.
—*cont.*

(2) If an action is commenced against a bailiff in a case where such a demand has been made and not complied with, judgment shall be given for the bailiff if the warrant is produced or proved at the trial, notwithstanding any defect of jurisdiction or other irregularity in the warrant: but the registrar who issued the warrant may be joined as a defendant in the action, and if the registrar is so joined and judgment is given against him, the costs to be recovered by the plaintiff against the registrar shall include such costs as the plaintiff is liable to pay to the bailiff.

(3) In this section (except in paragraph (a) of subsection (1) thereof) the expression “bailiff” includes any person acting by the order and in aid of a bailiff.

Warrants
evidence of
authority.

148. In any action commenced against a person for anything done in pursuance of this Act, the production of the warrant of the court shall be deemed sufficient proof of the authority of the court previous to the issue of the warrant.

PART VII.

ADMINISTRATION ORDERS.

Power to
make ad-
ministration
order when
debts less
than £50.

149.—(1) Where a debtor—

- (a) is unable to pay forthwith the amount of a judgment obtained against him in a county court; and
- (b) alleges that his whole indebtedness amounts to a sum not exceeding fifty pounds, inclusive of the debt for which the judgment was obtained;

that court may make an order (hereafter in this Part of this Act referred to as an “administration order”) providing for the administration of his estate.

(2) Where, in the opinion of the court in which the judgment was obtained, it would be inconvenient that that court should administer the estate, it shall cause a certificate of the judgment to be forwarded to the county court for the district in which the debtor resides or the majority of the creditors reside, and thereupon the latter county court shall have all the powers which it would have under this Part of this Act, had the judgment been obtained in it.

(3) An administration order shall not be invalid by reason only that the total amount of the debts is found

at any time to exceed fifty pounds, but in that case the court may, if it thinks fit, set aside the order. PART VII.
—cont.

(4) An administration order may provide for the payment of the debts of the debtor by instalments or otherwise, and either in full or to such extent as to the court under the circumstances of the case appears practicable, and subject to any conditions as to his future earnings or income which the court may think just.

(5) An administration order shall be carried into effect in such manner as may be prescribed by general rules made under this Part of this Act.

150. Where an administration order has been made the following provisions shall have effect:— Notice of
order and
proof of
debts.

- (a) Notice of the order shall be sent to the registrar of county court judgments, and be posted in the office of the county court for the district in which the debtor resides, and sent to every creditor notified by the debtor, or who has proved:
- (b) Any creditor of the debtor, on proof of his debt before the registrar, shall be entitled to be scheduled as a creditor of the debtor for the amount of his proof:
- (c) Any creditor may, in the manner prescribed by general rules made under this Part of this Act, object to any debt scheduled, or to the manner in which payment is directed to be made by instalments:
- (d) Any person who, after the date of the order, becomes a creditor of the debtor shall, on proof of his debt before the registrar, be scheduled as a creditor of the debtor for the amount of his proof, but shall not be entitled to any dividend under the order until the creditors who are scheduled as having been creditors before the date of the order have been paid to the extent provided by the order.

151.—(1) Subject to the provisions of the two sections next following, when an administration order is made, no creditor shall have any remedy against the person or property of the debtor in respect of any debt which the debtor has notified to a county court or which has been scheduled to the order, except with the leave of that county court, and on such terms as that court may impose. Effect of
administra-
tion order.

PART VII.
—*cont.*

(2) Any county court or other inferior court in which proceedings are pending against the debtor in respect of any debt so notified or scheduled shall, on receiving notice of the administration order, stay the proceedings, but may allow costs already incurred by the creditor, and such costs may, on application, be added to the debt.

Execution
by registrar.

152. Where it appears to the registrar of the county court at any time while an administration order is in force that property of the debtor exceeds in value ten pounds, he shall, at the request of any creditor, and without fee, issue execution against the debtor's goods :

Provided that the household goods, wearing apparel, and bedding of the debtor or his family, and the tools and implements of his trade to the value in the aggregate of twenty pounds, shall to that extent be protected from seizure.

Right of
landlord to
distrain
notwith-
standing
order.

153. A landlord or other person to whom any rent is due from a debtor in respect of whom an administration order is made, may at any time, either before or after the date of the order, distrain upon the goods or effects of the debtor for the rent due to him from the debtor, with this limitation, that if the distress for rent is levied after the date of the order, it shall be available only for six months' rent accrued due prior to the date of the order and shall not be available for rent payable in respect of any period subsequent to the date when the distress was levied, but the landlord or other person to whom the rent may be due from the debtor may prove under the order for the surplus due for which the distress may not have been available.

Appropriation of
money paid
under order.

154. Money paid into court under an administration order shall be appropriated—

- (a) first in satisfaction of the costs of the plaintiff in the action in respect of which the order was made;
- (b) next in satisfaction of the costs of administration (which shall not exceed two shillings in the pound on the total amount of the debts) ; and
- (c) then in liquidation of debts in accordance with the order.

Default in
payment of
instalments.

155. If the debtor makes default in payment of any instalment payable in pursuance of an administration order, he shall, unless the contrary is proved, be

deemed to have had since the date of the order the means to pay the sum in respect of which he has made default and to have refused or neglected to pay that sum.

PART VII.
—cont.

156. When the amount received under an administration order is sufficient to pay each creditor scheduled to the order to the extent thereby provided, and the costs of the plaintiff in the action in respect of which the order was made and the costs of the administration, the order shall be superseded, and the debtor shall be discharged from his debts to the scheduled creditors.

Discharge of
order.

157.—(1) The Lord Chancellor may from time to time, with the concurrence of the President of the Board of Trade, make general rules for carrying into effect the objects of this Part of this Act :

Rules for
purposes of
Part VII.

Provided that the said rules shall not extend the jurisdiction of the court.

(2) All rules made under this section shall be laid before Parliament within three weeks after they are made, if Parliament is then sitting, or, if Parliament is not then sitting, within three weeks after the beginning of the then next session of Parliament, and shall have effect as if enacted by this Act.

PART VIII.

FUNDS IN COURT.

158. The Lord Chancellor, with the concurrence of the Treasury, may make rules regulating the deposit, payment, delivery and transfer in, into and out of a county court of money and securities which belong to suitors, or are otherwise capable of being deposited in or paid or transferred into a county court or are under the custody of a county court, and regulating the evidence of such deposit, payment, delivery or transfer, and the manner in which money and securities in court are to be dealt with, and in particular—

Rules as to
funds in
county
courts.

- (a) regulating the placing of money in court (with such exceptions as may be prescribed) to deposit accounts or investment accounts and prescribing the rate of interest on money placed to such accounts, so however that the rate of interest on money placed to a deposit account shall be equal to the rate of interest for the time being payable on deposits in the Post Office Savings Bank;

PART VIII.
—*cont.*

- (b) requiring registrars to pay from time to time to the Accountant-General all money in court which is not required by them for meeting current demands, and requiring the Accountant-General to pay to the Commissioners all money received by him under the rules which is not required by him for meeting current demands;
- (c) requiring the annual publication of lists of accounts which have not been dealt with for such period as may be prescribed (not being less than fifteen years in the case of deposit and investment accounts or five years in the case of other accounts), and requiring the closing of any account included in any such list if the money standing to the credit of the account is not claimed within such period after the publication of the list as may be prescribed;
- (d) regulating the investment of money paid to the Commissioners under the rules and (subject to the provisions of this Part of this Act) prescribing the manner in which the interest received by the Commissioners on money so invested is to be dealt with;
- (e) regulating the payment or crediting of interest on money placed to deposit accounts and investment accounts respectively;
- (f) prescribing the smallest amount which is to be placed to an investment account (unless ordered by the court to be invested notwithstanding the smallness of the amount), the smallest amount which is to be placed to or remain in a deposit account and the smallest amount of money placed to a deposit account on which interest is to be credited;
- (g) prescribing the time at which money in court is to be placed to a deposit account or investment account, and at which interest on money placed to any such account is to begin and cease, and the mode of computing any such interest;
- (h) prescribing the circumstances in which interest on money placed to a deposit account or investment account, or interest on any securities in court, is

to be placed to a deposit account or an investment account; PART VIII.
—cont.

- (i) prescribing the manner in which money is to be furnished to registrars by the Accountant-General, and to the Accountant-General by the Commissioners, for the purpose of enabling registrars and the Accountant-General to comply with orders of court as to the payment of money out of court;
- (j) prescribing the accounts to be kept by registrars for the purposes of the rules;
- (k) providing for the vesting of money and securities in court in the holders of such offices as may be prescribed and their successors in office without any conveyance, assignment or transfer;
- (l) providing for the discharge of the functions of the Accountant-General under the rules by deputy;
- (m) prescribing the manner in which money or securities in court before the rules come into operation are to be dealt with, and providing for the transition to the provisions of the rules from the provisions of the following enactments, that is to say, sections seventy-one and one hundred and seventy-three of the County Courts Act, 1888, the County Courts (Investment) Act, 1900, paragraphs 4, 5, 6 and 7 of the Second Schedule to the Workmen's Compensation Act, 1925, and subsections (3) and (5) of section two hundred and five of the Supreme Court of Judicature (Consolidation) Act, 1925; 63 & 64 Vict.
c. 47.
15 & 16
Geo. 5. c. 84.
- (n) providing for such matters as are incidental to or consequential on the foregoing provisions of this section or are necessary for giving effect to those provisions.

159. The County Court Funds Rules shall not apply to the Mayor's and City of London Court, but the Lord Chancellor may make separate rules for that court regulating or making provision for any matter which may be regulated, or for which provision may be made, by the County Court Funds Rules, with the substitution of the Chamberlain of the City of London for the Accountant-General and the Commissioners. Rules as to
funds in
Mayor's and
City of
London
Court.

PART VIII.
—*cont.*Rules to be
laid before
Parliament.

160. Any rules made under this Part of this Act shall be laid before both Houses of Parliament as soon as may be after they are made and shall cease to have effect if either House, within the next subsequent twenty-eight days on which that House has sat after the date on which the rules are laid before it, resolves that the rules shall be annulled, but without prejudice to anything previously done thereunder or to the making of new rules.

Liability of
Consoli-
dated Fund
for funds in
court.

161.—(1) If the Lord Chancellor, whether on a representation made to him by any person interested or not, certifies that the Accountant-General—

(a) has failed to pay any money received by him under the County Court Funds Rules, or to transfer or deliver any securities vested in him under those rules whether solely or jointly with any other person, being money or securities required by any order of a county court to be paid, transferred or delivered by him; or

(b) has been guilty of any default with respect to any such money or securities;

the Treasury shall cause to be paid out of the Consolidated Fund or the growing produce thereof such sum as may be certified by the Lord Chancellor to be necessary for the purpose of paying the money so required to be paid, or of replacing the securities so required to be transferred or delivered, or of making good such default.

(2) If at any time the money in the hands of the Commissioners under the County Court Funds Rules is insufficient to pay any amount payable by them in pursuance of those rules, the Treasury shall either direct the Commissioners to realise a sufficient portion of the securities purchased by them under the rules and to apply the proceeds of such realisation in paying the amount so payable by them, or cause the required sum to be issued to the Commissioners out of the Consolidated Fund or the growing produce thereof.

(3) If in any year the aggregate sum received by the Commissioners by way of interest on the money invested by them under the County Court Funds Rules exceeds the aggregate amount of the interest due to be paid or credited in respect of that year on money placed to deposit

and investment accounts, the surplus, or such part thereof as the Treasury may direct, shall either be paid into the Exchequer or be applied as an appropriation in aid of the moneys provided by Parliament for the salaries and expenses connected with the county courts, and if in any year the said sum is less than the said amount, the deficiency shall, if not otherwise provided for, be made good out of the Consolidated Fund or the growing produce thereof.

PART VIII.
—*cont.*

162. All moneys standing to the credit of accounts which are closed in pursuance of the County Court Funds Rules shall be paid to the Commissioners and applied by them in redemption of debt :

Provision
as to
closed
accounts.

Provided that where, after any account has been closed as aforesaid, any person proves to the satisfaction of the court on behalf of which the account was kept that, if the account had not been closed, he would have been entitled to the money standing to the credit of the account or any part thereof, the court shall make an order for the payment to that person of the money to which he would have been entitled, together (if the court so directs) with all or any part of the interest on that money which would have been credited to the account if the account had not been closed, and the amount required to comply with the order of the court shall, if not otherwise provided for, be paid out of the Consolidated Fund or the growing produce thereof to the Accountant-General.

163. The Accountant-General and the Commissioners shall keep such accounts of their transactions under the County Court Funds Rules as the Treasury may direct, and those accounts shall be examined from time to time by the Comptroller and Auditor General, and copies of the accounts certified by the Comptroller and Auditor General, together with his report thereon, shall be laid by the Lord Chancellor before both Houses of Parliament.

Accounts to
be kept for
purpose of
County
Court Funds
Rules.

164.—(1) Where in any cause or matter in the King's Bench Division of the High Court, or in an admiralty action in the Probate, Divorce and Admiralty Division of that Court, money is in any manner recovered by or on behalf of, or adjudged or ordered to be paid to or for the benefit of, a person who is an infant or of unsound mind, the High Court or a judge thereof may

Transfer to
county
court of
money re-
covered
in High
Court by
infants, &c.

PART VIII. order the money or any part thereof to be paid into or
—*cont.* transferred to the county court of the district in which
that person resides or such other county court as the
High Court or judge may order.

(2) On the making of any such order, the money or the part thereof to which the order relates shall be paid or transferred according to the order, and shall, subject to any special order or direction of the High Court or a judge thereof, and to county court rules and to the County Court Funds Rules, or the Mayor's and City of London Court Funds Rules, as the case may be, be invested, applied or otherwise dealt with for the benefit of the person to whom the order relates in such manner as the county court in its discretion thinks fit.

(3) The provisions of this section shall apply to money which in proceedings under the Fatal Accidents Acts, 1846 to 1908, is recovered by or adjudged or ordered to be paid to the widow of the person killed as they apply to money recovered by or adjudged or ordered to be paid to an infant.

(4) Where before the first day of October, nineteen hundred and twenty-five, money recovered in any cause or matter in the King's Bench Division of the High Court by or on behalf of a person who is an infant or of unsound mind has been paid to the Public Trustee, it shall be lawful for the Public Trustee to pay that money, or so much of it as remains in his possession, into the county court of the district in which that person resides, and money so transferred shall be invested, applied or dealt with in the same manner as if it had been paid into the county court under subsection (2) of this section.

Amendment
of certain
enactments.
15 & 16
Geo. 5. c. 19.

165. Section sixty-three of the Trustee Act, 1925, and paragraphs 1 and 3 of the Second Schedule to the Workmen's Compensation Act, 1925, shall have effect as if references to rules of court included references to the County Court Funds Rules or the Mayor's and City of London Court Funds Rules, as the case may be.

Interpre-
tation of
Part VIII.

166. In this Part of this Act the following expressions have the meanings hereby respectively assigned to them :—

“The Accountant-General” means the Accountant-General of the Supreme Court;

“The Commissioners” means the National Debt Commissioners; PART VIII.
—cont.

“County Court Funds Rules” means rules made under section one hundred and fifty-eight of this Act;

“Mayor’s and City of London Court Funds Rules” means rules made under section one hundred and fifty-nine of this Act;

“Money in court” and “securities in court” means money or securities, as the case may be, deposited, paid, delivered or transferred in or into a county court in pursuance of this or any other Act or in pursuance of county court rules;

“Prescribed” means prescribed by the County Court Funds Rules.

PART IX.

MISCELLANEOUS AND GENERAL.

Financial Provisions.

167.—(1) The Lord Chancellor may from time to time, with the concurrence of the Treasury, make orders as to the fees to be paid on any proceedings which are for the time being authorised to be taken in a county court. Fees orders.

(2) Every such order shall be laid before both Houses of Parliament within ten days from the commencement of the session next after the making thereof.

(3) A copy of the fees orders for the time being in force shall be posted in some conspicuous place in every court-house and registrar’s office.

168. In default of the payment of any fees as provided by the fees orders for the time being in force, payment thereof shall be enforced, by order of the court, in like manner as payment of any debt adjudged by the court to be paid. Enforce-
ment of
liability
for fees.

PART IX.
—*cont.*

Enforce-
ment of
fines.

169. Payment of any fine imposed by any court under this Act may be enforced upon the order of the judge—

- (a) in like manner as payment of any debt adjudged by the court to be paid may be enforced under this Act; or
- (b) in like manner as payment of a sum adjudged to be paid on summary conviction may be enforced under the Summary Jurisdiction Acts.

Registrar
to take
charge of
fees, &c.

170.—(1) All fees payable under this Act, and all penalties, forfeitures and fines imposed under this Act (if not by this Act directed to be otherwise applied) shall be paid to the registrar.

(2) All fees, fines, penalties and forfeitures paid to a registrar (other than the registrar of the Mayor's and City of London Court) under this Act or any other Act, shall be dealt with by him in such manner as the Lord Chancellor, after consultation with the Treasury, may direct.

Security
for money
in hands of
officers.

171.—(1) Every registrar, other than a whole time registrar, shall give security for such sum, and in such manner and form, as the Treasury may from time to time direct for the due performance of his duties and for the due accounting for, and payment of, all moneys received by him under this Act or which he may become liable to pay for any misbehaviour in his office.

(2) Subject to the provisions of the last foregoing subsection, the Lord Chancellor, with the concurrence of the Treasury, shall from time to time make such rules as he thinks fit for securing the balances and other sums of money in the hands of any officers of a county court, and for the due accounting for and application of those balances and sums.

Accounts of
registrar.

172.—(1) A registrar shall, in addition to the accounts required to be kept by him under the County Court Funds Rules, keep such accounts as the Lord Chancellor, after consultation with the Treasury, may direct.

(2) All accounts kept by a registrar shall be audited at such times and in such manner as the Lord Chancellor, after consultation as aforesaid, may direct.

(3) This section shall not apply to the registrar of the Mayor's and City of London Court. PART IX.
—cont.

173. The Lord Chancellor may, subject to the consent of the Treasury as to numbers and salaries, appoint as officers in his department such auditors and other officers as he may consider necessary for the purpose of controlling the accounts of county courts. Central
accounts.

174. There shall be paid out of moneys provided by Parliament— Payment of
salaries and
expenses.

- (a) all salaries, remuneration, allowances, gratuities and other sums payable under Part I of this Act (except where otherwise expressly provided) or under the last foregoing section of this Act; and
- (b) the expenses of supplying the courts and offices with law and office books and stationery and postage stamps; and
- (c) expenses incurred in conveying to prison persons committed by the courts; and
- (d) all other expenses arising out of any jurisdiction for the time being conferred on the courts or any officer thereof.

Summonses and other documents.

175.—(1) Where any summons or other process issued from a county court is served by the bailiff of any court, the service may be proved by endorsement on a copy of the summons or process under the hand of that bailiff showing the fact and mode of the service. Proof of
service of
summonses,
&c.

(2) Any bailiff wilfully and corruptly endorsing any false statement on a copy of a summons or other process shall be guilty of a misdemeanour, and, on conviction thereof, shall be removed from his office or employment and shall be liable—

- (a) on conviction on indictment, to imprisonment for any term not exceeding two years; or
- (b) on summary conviction, to imprisonment for any term not exceeding six months or to a fine not exceeding fifty pounds, or to both such imprisonment and fine.

PART IX.

—*cont.*

Summonses
and other
process to be
under seal.

176.—(1) All summonses issuing out of a county court, and all such other documents so issuing as may be prescribed, shall be sealed or stamped with the seal of the court.

(2) All such summonses and other documents purporting to be sealed as aforesaid shall, in England, be received in evidence without further proof thereof.

Penalty for
falsely
pretending
to act under
authority
of court.

177. Any person who—

(a) delivers or causes to be delivered to any other person any paper falsely purporting to be a copy of any summons or other process of a county court, knowing it to be false; or

(b) acts or professes to act under any false colour or pretence of the process or authority of a county court;

shall be guilty of felony, and shall for each offence be liable on conviction on indictment to penal servitude for a term not exceeding seven years.

Penalty for
repre-
senting
document
to have
been issued
from county
court.

178.—(1) It shall not be lawful to deliver or cause to be delivered to any person any document which, not having been issued under the authority of a county court, has, by reason of its form or contents or both, the appearance of having been issued under such authority.

(2) If any person contravenes the provisions of this section, he shall for each offence be liable on summary conviction to a fine not exceeding fifty pounds.

(3) Nothing in this section shall be taken to prejudice the provisions of the last foregoing section of this Act.

Lessee to
give notice
of summons
for recovery
of land.

179. Every lessee to whom there is delivered any summons issued from a county court for the recovery of land demised to or held by him, or to whose knowledge any such summons comes, shall forthwith give notice thereof to his lessor or his bailiff or receiver, and if he fails so to do, he shall be liable to forfeit to the person of whom he holds the land an amount equal to the value of three years improved or rack rent of the land, to be recovered by action in any county court or other court having jurisdiction in respect of claims for such an amount.

Forfeiture for Non-Payment of Rent.

PART IX.

—cont.

180.—(1) Where a lessor is proceeding by action in a county court (being an action in which a county court has jurisdiction) to enforce against a lessee a right of re-entry or forfeiture in respect of any land for non-payment of rent, the following provisions shall have effect :—

Provisions
as to for-
feiture for
non-pay-
ment of
rent.

- (a) If the lessee pays into court not less than five clear days before the return day all the rent in arrear and the costs of the action, the action shall cease, and the lessee shall hold the land according to the lease without any new lease ;
- (b) If the action does not cease as aforesaid and the court at the trial is satisfied that the lessor is entitled to enforce the right of re-entry or forfeiture, the court shall order possession of the land to be given to the lessor at the expiration of such period, not being less than four weeks from the date of the order, as the court thinks fit, unless within that period the lessee pays into court all the rent in arrear and the costs of the action ;
- (c) If within the period specified in the order, the lessee pays into court all the rent in arrear and the costs of the action, he shall hold the land according to the lease without any new lease, but if the lessee does not, within the said period, pay into court all the rent in arrear and the costs of the action, the order shall be enforced in the prescribed manner, and so long as the order remains unreversed, the lessee shall be barred from all relief :

Provided that, where the lessor is proceeding in the same action to enforce a right of re-entry or forfeiture on any other ground as well as for non-payment of rent, or to enforce any other claim as well as the right of re-entry or forfeiture and the claim for arrears of rent, sub-paragraph (a) of this subsection shall not apply, and nothing in this subsection shall be taken to affect the power of the court to make any order which it would otherwise have power

PART IX. to make as respects the right of re-entry or forfeiture on
—*cont.* that other ground.

(2) Where any such action as aforesaid is brought in a county court and, at the time of the commencement of the action, one-half year's rent is in arrear and the lessor has a right to re-enter for non-payment thereof and no sufficient distress is to be found on the premises counter-vailing the arrears then due, the service of the summons in the action in the prescribed manner shall stand in lieu of a demand and re-entry.

(3) Where a lessor has enforced against a lessee, by re-entry without action, a right of re-entry or forfeiture as respects any land for non-payment of rent, the lessee may, if neither the annual value of the land nor the annual rent payable in respect thereof exceeds one hundred pounds, at any time within six months from the date on which the lessor re-entered apply to the county court for relief, and on any such application the court may, if it thinks fit, grant to the lessee such relief as the High Court could have granted.

(4) Nothing in this section shall be taken to affect the provisions of subsection (4) of section one hundred and forty-six of the Law of Property Act, 1925.

15 & 16
Geo. 5. c. 20.

(5) For the purposes of this section—

- (a) the expression “lease” includes an original or derivative under-lease; also an agreement for a lease where the lessee has become entitled to have his lease granted; also a grant at a fee farm rent, or securing a rent by condition;
- (b) the expression “lessee” includes an original or derivative under-lessee, and the persons deriving title under a lessee; also a grantee under any such grant as aforesaid and the persons deriving title under him;
- (c) the expression “lessor” includes an original or derivative under-lessor, and the persons deriving title under a lessor; also a person making such grant as aforesaid and the persons deriving title under him;

- (d) the expression "under-lease" includes an agreement for an under-lease where the under-lessee has become entitled to have his under-lease granted; PART IX.
—cont.
- (e) the expression "under-lessee" includes any person deriving title under an under-lessee.

Provisions as to solicitors.

181. No privilege shall be allowed to any solicitor to exempt him from the jurisdiction of the court. No privilege
allowed to
solicitors.

182. No roll of solicitors shall be kept in a county court, and a person qualified to act as a solicitor may practise in a county court notwithstanding that no such roll is kept therein and notwithstanding anything in section forty-four of the Solicitors Act, 1932. Discontinu-
ance of roll
of solicitors.

22 & 23
Geo. 5. c. 37.

183. A county court shall have the same power to enforce an undertaking given by a solicitor in relation to any proceedings in that court as the High Court has to enforce an undertaking so given in relation to any proceedings in the High Court. Power to
enforce
under-
takings of
solicitors.

184. The remuneration of a solicitor in respect of contentious business done by him in a county court shall be regulated in accordance with the provisions of sections fifty-nine to seventy of the Solicitors Act, 1932, and for that purpose those sections shall have effect subject to the following provisions:— Remunera-
tion of
solicitors
for con-
tentious
business
done in
county
court.

- (a) for the purpose of paragraph (i) of subsection (9) of section sixty, a county court shall be deemed to be a court having jurisdiction to enforce and set aside agreements;
- (b) a county court shall have the same jurisdiction as the High Court to make orders for the delivery by a solicitor of a bill of costs and for the delivery up of, or otherwise in relation to, any deeds, documents or papers in his possession, custody or power, in cases where the bill of costs, deeds, documents or papers relate wholly

PART IX.
—*cont.*

or partly to contentious business done by the solicitor in that county court;

- (c) where a bill of costs relates wholly or partly to contentious business done in a county court and the amount of the bill does not exceed one hundred pounds, the powers and duties of the High Court relating thereto under sections sixty-five, sixty-six and sixty-seven may be exercised and performed by a county court in which any of the business was done;
- (d) the registrar of a county court shall be the taxing officer of that court but any taxation of costs by him may be reviewed by the judge on the application of any party thereto;
- (e) on the taxation of any costs or bill of costs, the amount which may be allowed in respect of any item relating to proceedings in a county court shall not exceed the amount which could have been allowed in respect of that item as between party and party in those proceedings, having regard to the nature of the proceedings and the amount of the claim and counterclaim (if any) therein.

Prohibition
on persons
other than
solicitors
receiving re-
muneration
for business
done in
county
court.

185. No person other than a solicitor shall be entitled to have or recover any fee or reward for appearing or acting on behalf of any other party in any proceedings in a county court:

Provided that nothing in this Act shall affect the right of any barrister to appear or act in any court, or of any solicitor to recover costs in respect of his employment of a barrister to appear or act as aforesaid.

Provisions as to other local courts.

Mayor's and
City of
London
Court.
10 & 11
Geo. 5.
c. cxxxiv.
15 & 16 Vict.
c. lxxvii.

186.—(1) For the purpose of all proceedings within the jurisdiction of a county court, the Mayor's and City of London Court shall be deemed to be a county court, and shall, subject to the provisions of the Mayor's and City of London Court Act, 1920, be governed by the statutes and rules for the time being applicable to county courts so far as they do not conflict with the London (City) Small Debts Extension Act, 1852.

(2) Nothing in this Act shall be taken to diminish any of the powers, rights or privileges of the judges of the Mayor's and City of London Court or the authority of the mayor, aldermen and commons of the City of London in common council assembled in relation to that court or in relation to the judge or officers thereof, or in relation to the fees taken therein, as the said powers, rights, privileges and authority existed immediately before the commencement of this Act.

PART IX.
—*cont.*

187.—(1) Where—

- (a) any court of local jurisdiction other than a county court (hereafter in this section referred to as a "local court") is established within the limits of any city, borough or parish; or
- (b) the jurisdiction of any local court extends into the limits of a city, borough or parish;

Exclusion of
jurisdiction
of local
courts in
certain
cases.

the council of the city or borough, or a majority of the ratepayers of the parish, as the case may be, may present a petition to His Majesty in Council praying that the jurisdiction of the local court in any proceedings whereof a county court has cognizance shall be excluded.

(2) At least two months before any such petition is presented, notice thereof shall be given by public advertisement in the city, borough or parish, as the case may be, and in some newspaper circulating therein.

(3) If such a petition is duly presented, His Majesty, by Order in Council, may, if no counter petition has been presented, and if no caveat has been entered at the Privy Council Office, declare the exclusion of the jurisdiction of the local court throughout the whole or any part of any county court district.

(4) If a counter petition is presented, or any caveat so entered, His Majesty may refer the petition and the counter petition (if any) to the Judicial Committee of the Privy Council, and upon the report of that Committee may—

- (a) make such Order in Council with respect to the matter of the petition as He is advised to make; and

PART IX.
—cont.

(b) award compensation to any person entitled to appoint officers of the local court or to any officer thereof appointed before the thirteenth day of August, eighteen hundred and eighty-eight.

(5) The Treasury shall have power to pay any compensation so awarded.

Actions for price of beer, &c.

Prohibition
of actions
for price
of beer, &c.
consumed
on premises.

188. No action shall be brought in any county court or any other court to recover any debt or sum of money alleged to be due—

(a) in respect of the sale of any ale, porter, beer, cider or perry which was consumed on the premises where it was sold or supplied, or

(b) in respect of any money or goods lent or supplied, or of any security given, for, in or towards the obtaining of any such ale, porter, beer, cider or perry.

Transitional.

Transitional
provisions
as to high
bailiffs.

189.—(1) Where, immediately before the commencement of this Act, the offices of high bailiff and registrar of any county court were held by different persons—

(a) nothing in this Act shall affect the position of the person holding the office of high bailiff of that court, but, on that person vacating his office, no other person shall be appointed thereto; and

(b) so long as the said offices continue to be held by different persons, the provisions of this Act shall have effect in relation to that court subject to the modifications set out in Part I of the Fourth Schedule to this Act.

(2) References to a high bailiff in any enactment, Order in Council, order, rule, regulation or any document whatsoever shall, except in relation to any court where the offices of registrar and high bailiff are held by different persons, be construed as a reference to a registrar.

190. This Act shall have effect subject to the transitional provisions set out in Parts II and III of the Fourth Schedule to this Act.

PART IX.
—*cont.*
Miscel-
laneous
transitional
provisions.

General.

191. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them :—

Interpreta-
tion.

- (a) “ Action ” includes a suit, and means any proceedings in a county court which may be commenced as prescribed by plaint;
- (b) “ Admiralty county court ” means a court appointed to have admiralty jurisdiction by order under this Act;
- (c) “ Admiralty proceedings ” means proceedings in which the claim would not be within the jurisdiction of a county court but for the provisions of sections fifty-five and fifty-six of this Act;
- (d) “ Bailiff ” includes a registrar;
- (e) “ County court rules ” means rules made under section ninety-nine of this Act;
- (f) “ Court ” and “ county court ” mean a court held for a district under this Act;
- (g) “ District ” and “ county court district ” mean a district for which a court is to be held under section two of this Act;
- (h) “ Fees orders ” means orders made under section one hundred and sixty-seven of this Act;
- (i) “ Hearing ” includes trial, and the expressions “ hear ” and “ heard ” shall be construed accordingly;
- (j) “ Hereditament ” includes both a corporeal and an incorporeal hereditament;
- (k) “ Judge ” and “ judge of county courts ” mean a judge appointed for a district under this Act;

PART IX.
—*cont.*

- (l) "Landlord," in relation to any land, means the person entitled to the immediate reversion of that land or, if the property therein is held in joint tenancy, any of the persons entitled to the immediate reversion;
- (m) "Lord Chancellor" includes the First Commissioner for the custody of the Great Seal;
- (n) "Matter" means every proceeding in a county court which may be commenced as prescribed otherwise than by plaint;
- (o) "Officer" in relation to a court means any registrar, deputy registrar or assistant registrar of that court, and any clerk, bailiff, usher or messenger in the service of that court;
- (p) "Party" includes every person served with notice of, or attending, any proceeding, whether named as a party to that proceeding or not;
- (q) "Prescribed" means prescribed by the county court rules for the time being in force;
- (r) "Proceedings" includes both actions and matters;
- (s) "Probate proceedings" means proceedings brought in a county court by virtue of the provisions of section sixty of this Act, or transferred to that court under section sixty-one of this Act;
- (t) "Registrar" and "Registrar of a county court" means a registrar appointed for a district under this Act, or in a case where two registrars are appointed jointly, either of those registrars;
- (u) "Return day" means the day appointed in any summons or proceeding for the appearance of the defendant or any other day fixed for the hearing of any proceedings;
- (v) "Solicitor" means solicitor of the Supreme Court;
- (w) "Superannuation Acts" means the Superannuation Acts, 1834 to 1919;

- (x) "Whole-time registrar" means a registrar in whose case a direction has been given by the Lord Chancellor under section seventeen of this Act.

PART IX.
—cont.

192.—(1) Nothing in this Act shall affect any Order in Council, order, rule, regulation, scale of fees made, direction given, instrument issued or thing done under any former enactment relating to county courts, but any such Order in Council, order, rule, regulation, scale of fees, direction, instrument or thing shall, if in force at the commencement of this Act, continue in force and, so far as it could have been made, given, issued or done under this Act, shall have effect as if made, given, issued or done under this Act, Savings.

(2) For the purpose of the last foregoing subsection it shall be deemed that an Order in Council made under section two of the County Courts Admiralty Jurisdiction Act, 1868, could have been made under section fifty-five of this Act, and that an Order in Council made under section four of the County Courts Act, 1888, could have been made under section two of this Act.

(3) Any person holding office or acting or serving, or deemed to be acting or serving, under any former enactment relating to county courts shall continue to hold his office, or to act or serve, as if he had been appointed under this Act, but nothing in this Act shall affect the terms and conditions on and subject to which any person held office immediately before the commencement of this Act, or prejudice or affect any right to pension, compensation, gratuity or allowance which a person would otherwise have had on retirement from his office or otherwise, or the amount thereof.

(4) References in any enactment or document to a county court constituted under the County Courts Act, 1888, shall be construed as references to a county court constituted under this Act and any act done or proceedings taken in respect of any action or matter whatsoever before the commencement of this Act in a county court constituted under the County Courts Act, 1888, shall be deemed to have been done or taken in a county court constituted under this Act.

PART IX.
—*cont.*

(5) Save as therein otherwise expressly provided, nothing in this Act shall affect the operation of any enactment which came into force after the first day of January, eighteen hundred and eighty-nine, and is in force at the commencement of this Act, and is not expressly repealed by this Act, except that references in any such enactment to any enactment repealed by this Act shall be construed as references to the corresponding enactment in this Act, and nothing in section one hundred and four or one hundred and five of this Act shall be taken to affect the following enactments, namely,—

- | | |
|--------------------------|---|
| 16 & 17 Vict.
c. 137. | (a) sections thirty-seven to forty of the Charitable Trusts Act, 1853; |
| 37 & 38 Vict.
c. 42. | (b) section thirty-six of the Building Societies Act, 1874; |
| 41 & 42 Vict.
c. 76. | (c) section four of the Telegraph Act, 1878; |
| 49 & 50 Vict.
c. 27. | (d) section ten of the Guardianship of Infants Act, 1886; |
| 49 & 50 Vict.
c. 57. | (e) section one of the Parliamentary Elections (Returning Officers) Act (1875) Amendment Act, 1886. |

(6) Nothing in the provisions of this Act which relate to any matter with respect to which Rules of the Supreme Court may be made under section ninety-nine of the Supreme Court of Judicature (Consolidation) Act, 1925, as amended by any other Act, shall affect the power to make such rules as to that matter, and any power to repeal any enactment repealed by this Act conferred by paragraph (g) of subsection (1) of the said section ninety-nine shall include power to repeal so much of this Act as re-enacts that enactment.

(7) Any document referring to any former enactment relating to county courts shall be construed as referring to the corresponding enactment in this Act.

(8) Nothing in this Act shall affect the rights or privileges of the chancellor, masters and scholars of the universities of Oxford or Cambridge, or the jurisdiction of the courts of the chancellors or vice-chancellors of the said universities held under their respective charters or otherwise.

(9) Nothing in this Act shall affect the title of the Commissioners of Works to any property vested in them under the County Court (Buildings) Act, 1870.

PART IX.

—*cont.*33 & 34 Vict.
c. 15.

(10) In this section the expression “former enactment relating to county courts” means any enactment repealed by this Act, and any enactment repealed by the County Courts Act, 1888.

(11) Nothing in this section shall be taken to prejudice the provisions of section thirty-eight of the Interpretation Act, 1889.

52 & 53 Vict.
c. 63.

193.—(1) This Act may be cited as the County Courts Act, 1934.

Short title,
extent, com-
mencement
and repeal.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into operation on the first day on which, by virtue of orders made by His Majesty in Council under subsection (4) of section thirty-five of the County Courts (Amendment) Act, 1934, all the provisions of that Act will be in operation.

(4) The enactments mentioned in the Fifth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

SCALE OF PENSIONS AND ALLOWANCES OF JUDGES AND REGISTRARS.

PART I.

Section 9.

JUDGES' PENSIONS.

When the number of completed years of service in the office of judge of county courts is as specified in the first column of the

1ST SCH.
—cont.

following table, the annual pension shall not exceed the fraction of the last annual salary respectively specified in the second column of that table :—

Years of service.	Fraction of salary.
Less than 5	Six-thirtieths.
5	Ten-thirtieths.
6	Eleven-thirtieths.
7	Twelve-thirtieths.
8	Thirteen-thirtieths.
9	Fourteen-thirtieths.
10	Fifteen-thirtieths.
11	Sixteen-thirtieths.
12	Seventeen-thirtieths.
13	Eighteen-thirtieths.
14	Nineteen-thirtieths.
15 or more	Twenty-thirtieths.

PART II.

Section 21.

REGISTRARS' SUPERANNUATION ALLOWANCES.

1. An annual allowance not exceeding one-ninth of the last annual salary may be granted after the completion of a period of service of five years.

2. Where the period of service completed exceeds five years, there may be granted an annual allowance not exceeding one-ninth of the last annual salary with an addition of one-thirty-sixth of that salary for each completed year's service in excess of five.

3. The maximum allowance shall be two-thirds of the last annual salary.

4. For the purpose of this Schedule, the annual salary of a registrar who is also a district registrar of the High Court shall be deemed to include any salary payable in respect of his services as such district registrar.

SECOND SCHEDULE.

EXTENT OF JURISDICTION OF COURT UNDER CERTAIN ENACTMENTS. Section 52.

Enactment.	Limit of jurisdiction.
THE LAW OF PROPERTY ACT, 1922—	
Subsection (1) of section one hundred and twenty-nine, paragraph (v) of subsection (1) of section one hundred and thirty-nine, and paragraphs (6) and (8) of the Twelfth Schedule.	In a case where the land which is to be dealt with in the court does not exceed in capital value five hundred pounds or in annual rateable value thirty pounds.
Section one hundred and thirty-two.	In a case where the lord is proceeding by action in the court to enforce the right of forfeiture.
THE TRUSTEE ACT, 1925—	
Subsection (1) of section forty-one, sections forty-two, fifty-one, fifty-seven, sixty, sixty-one and sixty-two.	In a case where the trust estate or fund to be dealt with in the court does not exceed in amount or value five hundred pounds.
Sections forty-four, forty-five, and forty-six.	In a case where the land or the interest or contingent right in land which is to be dealt with in the court forms part of a trust estate which does not exceed in amount or value five hundred pounds.
Sections forty-seven and forty-eight.	In a case where the judgment is given or order is made by the court.
Sections fifty and fifty-six -	In a case where a vesting order can be made by the court.
Section fifty-three - -	In a case where the amount or value of the property to be dealt with in the court does not exceed five hundred pounds.

2ND SCH.
—*cont.*

Enactment.

Limit of jurisdiction.

THE TRUSTEE ACT, 1925—*cont.*

Section fifty-nine	-	-	In the case of any proceedings before the court.
Section sixty-three	-	-	In a case where the money or securities to be paid into court do not exceed in amount or value five hundred pounds.

THE LAW OF PROPERTY ACT,
1925—

Subsections (4) and (5) of section three, sections thirty, forty-nine, and sixty-six, proviso (iii) to paragraph 3 of Part III of the First Schedule, and proviso (v) to sub-paragraph (3) and provisos (iii) and (iv) to sub-paragraph (4) of paragraph 1 of Part IV of the First Schedule.			In a case where the land which is to be dealt with in the court does not exceed in capital value five hundred pounds or in annual rateable value thirty pounds.
Subsection (1) of section eighty-nine, subsection (1) of section ninety, and sections ninety-one and ninety-two.			In a case where the amount owing in respect of the mortgage or charge at the date of the commencement of the proceedings does not exceed five hundred pounds.
The proviso to subsection (1) of section one hundred and thirty-six.			In a case where the amount or value of the debt or thing in action does not exceed one hundred pounds.
Section one hundred and forty-six.			In a case where the lessor is proceeding by action in the court to enforce the right of entry or forfeiture, or, if the lessor is proceeding to enforce the said right otherwise than by action, in a case where neither the rent nor the value of the property comprised in the lease exceeds the sum of one hundred pounds by the year.

Enactment.	Limit of jurisdiction.	2ND SCH. —cont.
THE LAW OF PROPERTY ACT, 1925—cont.		
Section one hundred and forty-seven.	In a case where neither the rent nor the value of the house or other building exceeds the sum of one hundred pounds by the year.	
Sections one hundred and sixty-nine, one hundred and eighty-one and one hundred and eighty-eight.	In a case where the amount or value of the property or of the interest in the property which is to be dealt with in the court does not exceed five hundred pounds.	
THE LAND CHARGES ACT, 1925—		
Subsection (6) of section two	In a case where the action was brought or the petition in bankruptcy was filed in the court.	
Subsection (5) of section six -	In a case where the order affecting land has been made by the court.	
Subsection (3) of section eight	In a case where an application under section twenty-three of the Deeds of Arrangement Act, 1914, could be entertained by the court.	
Subsection (8) of section ten	In a case where the land charge is within one of the following classes specified in the said section ten, viz., Class C (i), C (ii), or D (i), if the amount does not exceed five hundred pounds.	
	In a case where the land charge is within Class C (iii), if the charge is for a specified capital sum of money not exceeding five hundred pounds, or, where the charge is not for a specified capital sum, if the land affected does not exceed in capital value five hundred pounds or in annual rateable value thirty pounds.	

2ND SCH.
—cont.

Enactment.

Limit of jurisdiction.

THE LAND CHARGES ACT, 1925—
cont.

Subsection (8) of section ten	In a case where the land charge is within one of the following classes specified in the said section ten, viz., Class A, Class B, Class C(iv), Class D(ii), Class D (iii) or Class E, if the land affected does not exceed in capital value five hundred pounds or in annual rateable value thirty pounds.
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THE ADMINISTRATION OF ESTATES ACT, 1925—

Subsection (2) of section thirty-eight, proviso (ii) to subsection (1) of section forty-one, and subsection (2) of section forty-three.	In a case where the estate in respect of which the application is made does not exceed in amount or value five hundred pounds.
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Section seventeen	- - In a case where the legal proceeding is pending in the , court.
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THIRD SCHEDULE.

Section 99. ENACTMENTS FORMERLY REGULATING OR PROVIDING FOR
MATTERS WHICH CAN BE REGULATED OR PROVIDED
FOR BY COUNTY COURT RULES.

THE COUNTY COURTS ADMIRALTY JURISDICTION ACT, 1868
(31 & 32 Vict. c. 71).

Section 8.—If during the progress of an Admiralty cause in a county court it shall appear to the court that the cause could be more conveniently prosecuted in some other county court the court may by order transfer it to such other county court . . . and the cause shall thenceforward be so prosecuted accordingly.

THE COUNTY COURTS ACT, 1888 (51 & 52 Vict. c. 43).

Section 22.—A judge proposing to sue any person dwelling or carrying on business in any district of which he is the judge may bring his action in the court of any adjoining district of which he is not the judge; and any person proposing to sue a judge may bring his action in any court of a district adjoining the district of which the defendant is judge.

Section 33.— . . . Every bailiff duly appointed may serve or execute any process which by any Act passed or to be passed is directed to be served or executed by a high bailiff, unless otherwise specially provided against therein.

SAD SCH.
—cont.

Section 42.—If an action be brought by an officer in the court of which he is an officer, except as official receiver, the judge shall, at the request of the defendant, order that the venue be changed, and that the action be sent for trial to the court of some convenient district of which he is not the judge; and the registrar of the first-mentioned court shall forthwith transmit by post to the registrar of such last-mentioned court a certified copy of the plaint as entered in the plaint book, the duplicate copy of the summons and particulars served on the defendant, and a certified copy of the order for changing the venue as entered in the minute book; and the judge of such last-mentioned court shall appoint a day for the trial, notice whereof shall be sent by post or otherwise by the registrar of such last-mentioned court to both parties.

Section 43.—If an action be brought against an officer of a county court, the summons may issue in the district of which he is an officer, or in any adjoining district the judge of which is not the judge of a court of which the defendant is an officer.

Section 56.—All personal actions where the debt, demand or damage claimed is not more than one hundred pounds, whether on balance of account or otherwise . . . shall be heard and determined in a summary way according to the provisions of this Act . . .

Section 59.—Actions of ejectment . . . may be brought and prosecuted in the court of the district in which the lands, tenements or hereditaments are situate . . .

Section 73.—On the application of any person desirous to bring an action under this Act, the registrar of the court shall enter in a book to be kept for this purpose in his office a plaint in writing, stating the names and the last known places of abode of the parties, and the substance of the action intended to be brought, every one of which plaints shall be numbered in every year according to the order in which it shall be entered; and thereupon a summons, stating the substance of the action, and bearing the number of the plaint on the margin thereof, shall be issued under the seal of the court, according to such form, and be served on the defendant so many days before the day on which the court shall be holden at which the action is to be tried, as shall be prescribed, and delivery of such summons to the defendant, or in such other manner as shall be so prescribed, shall be deemed good service; and no misnomer or inaccurate description of any person

3RD SCH
—cont.

or place in any such plaint or summons shall vitiate the same, so that the person or place be therein described so as to be commonly known.

Section 74.—Except where by this Act it is otherwise provided, every action or matter may be commenced in the court within the district of which the defendant or one of the defendants shall dwell or carry on his business at the time of commencing the action or matter, or it may be commenced, by leave of the judge or registrar, in the court within the district of which the defendant or one of the defendants dwelt or carried on business, at any time within six calendar months next before the time of commencement, or, with the like leave in the court in the district of which the cause of action or claim wholly or in part arose.

Section 75.—The provisions of the next preceding section shall not apply to any of the following proceedings; but

- (1) Proceedings which relate to the recovery or sale of any mortgage, charge, or lien on lands, tenements, or hereditaments, or to partition, shall be taken in that court within the districts of which the lands, tenements, or hereditaments, or any part thereof, are situate :
- (2) Proceedings under the Trustee Acts, 1850 and 1852, shall be taken in the court within the district of which the persons making the application, or any of them, reside or resides :
- (3) Proceedings for the administration of the assets of a deceased person shall be taken in the court within the district of which the deceased person had his last place of abode in England, or in which the executors or administrators, or any one of them, shall have their or his place of abode :
- (4) Proceedings in any partnership case shall be taken in the court within the district of which the partnership business was or is carried on :

Provided that if during the progress of any such proceedings it shall be made to appear to the court that the same could be more conveniently heard in some other court, it shall be competent for the court to transfer the same to such other court, and thereupon the proceedings shall be taken in such other court.

Section 76.—Any summons or other process which under this Act shall be required to be served or executed out of the district of the court from which the same shall have issued, may be served or executed by the bailiff of any court in any part of England, and such service or execution shall be as valid as if the same had been made by the bailiff of the court out of which such summons or other process shall have issued within the jurisdiction of the court for which he acts.

Section 77.—Any summons or other process may be served or a warrant executed within five hundred yards of the boundary of the district of the court from which the same issued by the bailiff of such court, or if the judge of such court so orders, by such bailiff within the district of any other court.

3RD SCH.
—cont.

Section 79.—On the return day the plaintiff shall appear, and thereupon the defendant shall be required to appear to answer the plaint; and on answer being made in court the judge shall proceed in a summary way to try the action and give judgment, without further pleading or formal joinder of issue.

Section 80.—Subject to the power of amendment conferred by this Act, no evidence of any demand or claim shall be given by the plaintiff on the trial or hearing, except such as shall be stated in the summons or other proceeding under this Act directed to be issued or taken.

Section 82.—Subject to the power of amendment conferred by this Act, no defendant shall be allowed to set off or set up by way of counterclaim any debt or demand claimed or recoverable by him from the plaintiff, or to set up by way of defence, and to claim and have the benefit of infancy, coverture, or any statute of limitations, or of his discharge under any statute relating to bankrupts or any Act for relief of insolvent debtors, without the consent of the plaintiff, unless the prescribed notice thereof shall have been given to the registrar; and in every case in which the practice of the court shall require such notice to be given, the registrar of the court shall as soon as conveniently may be after receiving such notice, communicate the same to the plaintiff by post, or by causing the same to be delivered at his usual place of abode or business, but it shall not be necessary for the defendant to prove on the trial that such notice was communicated to the plaintiff by the registrar.

Section 84.—Where a plaintiff shall dwell or carry on business in the district of the Bloomsbury County Court of Middlesex, or in the district of the Brompton County Court of Middlesex, or in the district of the Clerkenwell County Court of Middlesex, or in the district of the Lambeth County Court of Surrey, or in the district of the Marylebone County Court of Middlesex, or in the district of the Shoreditch County Court of Middlesex, or in the district of the Southwark County Court of Surrey, or in the district of the Westminster County Court of Middlesex, or in the district of the Whitechapel County Court of Middlesex, or in the district of the City of London Court, and the defendant shall dwell or carry on business in the district of any of the said courts, the action or matter may be commenced and all proceedings thereon taken and had either in the court of the district in which the plaintiff shall dwell or carry on business, or in the court of the district in which the defendant shall dwell or carry on business.

3RD SCH.
—cont.

Section 85.—If a judge shall be satisfied by either party to an action or matter pending in his court that such action or matter can be more conveniently or fairly tried or heard in some other court, he shall order that the same be transferred to such other court, or, if the judge shall be interested in any action or matter pending in his court, he shall order that the same be transferred to some convenient court of which he is not the judge, at his discretion; and in either case the registrar of the court in which the action or matter was commenced shall forthwith transmit by post to the registrar of the court to which it is to be sent, a certified copy of all the proceedings therein, and the judge of such last-mentioned court shall appoint a day for the trial or hearing, notice whereof shall be sent, by post or otherwise, by the registrar to all parties interested, and thenceforth all proceedings therein shall be taken in such court as if the action or matter had been commenced therein.

Section 87.—The judge may at all times amend all defects and errors in any proceeding in the court, whether there is anything in writing to amend by or not, and whether the defect or error be that of the party applying to amend, or not; and all such amendments may be made with or without costs, and upon such terms as the judge may think just; and all such amendments as may be necessary for the purpose of determining the real question in controversy between the parties shall be so made, if duly applied for.

Section 88.—If upon the return day, or at any continuation or adjournment of the court, or of the action or matter, the plaintiff shall not appear, the action or matter shall be struck out; and if he shall appear but shall not make proof of his claim to the satisfaction of the court, it shall be lawful for the judge to nonsuit the plaintiff, or to give judgment for the defendant, and in either case where the defendant shall appear and shall not admit the claim, to award to the defendant, by way of costs and satisfaction for his trouble and attendance, such sum as the judge in his discretion shall think just, and such sum shall be recoverable from the plaintiff by such ways and means as any debt or damage ordered to be paid by the same court can be recovered: Provided always, that if the plaintiff shall not appear when called upon, and the defendant, or some one duly authorised on his behalf, shall appear, and admit the cause of action to the full amount claimed, and pay the fees payable in the first instance by the plaintiff, the judge, if he shall think fit, may proceed to give judgment as if the plaintiff had appeared.

Section 89.—In every case where the plaintiff shall not appear, either in person or by some person duly authorised on his behalf, upon the return day, or at any continuation or adjournment of the court or of the action or matter, and the defendant shall appear

either in person or by some person duly authorised on his behalf, it shall be lawful for the court to award to the defendant by way of costs of attendance and satisfaction for his trouble, such sum as the court shall think just; and the sum so awarded shall be recoverable from the plaintiff by such ways and means as any debt or damage ordered to be paid by the court can be recovered.

3RD SCH.
—cont.

Section 90.—If in any action founded on contract a defendant shall not appear at the hearing, either in person or by some person duly authorised on his behalf, and no sufficient excuse for the defendant's absence shall be shown, the registrar may, by leave of the judge or in case of the judge's death or unavoidable absence, upon due proof of the service of the summons and of the debt being due and owing, enter up judgment for the plaintiff, and shall have the same power to make an order for payment by instalments, or to enter up judgment of nonsuit, or to strike out or adjourn the action, as a judge would have; and such judgment shall be as valid as if both parties had attended the court.

Section 91.—If on the return day, or at any continuation or adjournment of the court or of the action or matter, the defendant shall not appear either in person or by some person duly authorised on his behalf, or sufficiently excuse his absence, or shall neglect to answer when called in court, the judge, upon due proof of service, may proceed to the trial or hearing on the part of the plaintiff only, and the judgment or order thereupon shall be as valid as if both parties had attended: Provided always, that the judge in any such case, at the same or any subsequent court, may set aside any judgment or order so given or made in the absence of the defendant, and the execution thereupon, and may grant a new trial or hearing, upon such terms, if any, as to payment of costs, giving security or such other terms as he may think just, on sufficient cause shown to him for that purpose.

Section 92.—Where a defendant appearing at the hearing, either in person or by some person duly authorised on his behalf, admits the claim, the registrar may, by leave of the judge, or in case of the judge's death or unavoidable absence, settle the terms and conditions upon which it is to be paid, and enter up judgment accordingly as a judgment of the court. . . .

Section 93.— . . . but the Court shall have power to nonsuit the plaintiff in every case in which satisfactory proof shall not be given entitling either the plaintiff or defendant to judgment. The judge shall also in every case whatever have the power, if he shall think just, to order a new trial to be had upon such terms as he shall think reasonable, and in the meantime to stay the proceedings.

Section 101.—The party requiring a jury to be summoned shall give to the registrar of the court, or leave at his office,

3RD SCH.
—cont.

such notice thereof as shall be prescribed; and the said registrar shall cause notice of such demand of a jury, made either by the plaintiff or defendant, to be communicated to the other party to the said action, either by post or by causing the same to be delivered at his usual place of abode or business, but it shall not be necessary for either party to prove on the trial that such notice was communicated to the other party by the registrar. Every party requiring a jury to be summoned shall, at the time of giving the said notice, and before he shall be entitled to have such jury summoned, pay to the registrar of the court the sum of eight shillings for payment of the jury, and such sum shall be considered as costs in the action, unless otherwise ordered by the judge. Whenever it is required that a jury should be summoned for the trial of any matter arising out of the jurisdiction given to the court by section sixty-seven of this Act, the jury shall be summoned from the list of jurors in the possession of the registrar of the court in which the action or matter was commenced.

Section 106.—The judge may in any case make orders for granting time to the plaintiff or defendant to proceed in the prosecution or defence of the action or matter and also may from time to time adjourn . . . the hearing or further hearing of any action or matter in such manner as the judge may think fit.

Section 107.—It shall be lawful for the defendant in any action or matter within such time as shall be prescribed, to pay into court such sum of money as he shall think a full satisfaction for the demand of the plaintiff, together with the costs incurred by the plaintiff up to the time of such payment; and notice of such payment shall be communicated by the registrar to the plaintiff by post, or by causing the same to be delivered at his usual place of abode or business; and the said sum of money shall be paid to the plaintiff; but if the plaintiff shall elect to proceed, and shall recover no further sum in the action or matter than shall have been so paid into court, he shall pay to the defendant the costs incurred by him in the said action or matter after such payment; and such costs shall be settled by the court, and an order shall thereupon be made by the court for the payment of such costs by the plaintiff.

Section 108.—Where a party is required to give security, such security shall be at the cost of the party giving it, and in the form of a bond, with sureties, to the other party or intended party in the action or matter: Provided always, that the court in which any action on the bond shall be brought may by order give such relief to the obligors as may be just, and such order shall have the effect of a defeasance of such bond.

Section 109.—Where a party is required to give security, he may in lieu thereof deposit with the registrar, if the security is required to be given in the court, or with a master of the Supreme

Court if the security is required to be given in the High Court, a sum equal in amount to the sum for which he would be required to give security, together with a memorandum, to be approved of by such registrar or master, and to be signed by such party, his solicitor or agent, setting forth the conditions on which such money is deposited, and the registrar or master shall give to the party paying a written acknowledgment of such payment; and the judge of the county court, when the money shall have been deposited in such court, or a Judge of the High Court when the money shall have been deposited in the High Court, may, on the same evidence as would be required to enforce or avoid such bond as in the last preceding section is mentioned, order such sum so deposited to be paid out to such party or parties as he shall think just.

3RD SCH.
—cont.

Section 110.—Either of the parties to any action or matter may obtain from the registrar summonses to witnesses, with or without a clause requiring the production of books, deeds, papers, and writings in the possession or control of the person summoned as a witness; and such summonses, and any summonses which are now or may be required to be served personally, may, under such regulations as may be prescribed, be served by a bailiff of the court or otherwise.

Section 113.—All the costs of any action or matter in the court, not herein otherwise provided for, shall be paid by or apportioned between the parties in such manner as the court shall think just, and in default of any special direction shall abide the event of the action or matter, and execution may issue for the recovery of any such costs in like manner as for any debt adjudged in the said court.

Section 118.—All costs and charges between party and party shall be taxed by the registrar of the court in which such costs and charges were incurred, but his taxation may be reviewed by the judge on the application of either party, and no costs or charges shall be allowed on such taxation which are not sanctioned by the scale then in force . . .

Section 119.—The judge may award costs on any scale higher than that which would be otherwise applicable to the plaintiff on any amount recovered, however small, or to a defendant who successfully defends an action brought for any amount, however small, provided that the said judge certifies in writing that the action involved some novel or difficult point of law, or that the question litigated was of importance to some class or body of persons, or of general or public interest.

Section 129.— . . . but if a copy of such order or summons [granted by the High Court or by any judge thereof to shew cause why a writ of certiorari or prohibition should not issue to any court] shall not be served by the party who obtained

3RD SCH.
—*cont.*

it on the opposite party and on the registrar two clear days before the day fixed for the trial of the action or matter, the judge may, in his discretion, order the party who obtained the order or summons to pay all the costs of the day, or so much thereof as he may think fit, unless the High Court or a Judge thereof shall have made some order respecting such costs.

Section 130.—Where a writ of certiorari or of prohibition to a court shall have been granted by the High Court or a Judge thereof on an ex parte application, and the party who obtained it shall not lodge it with the registrar, and give notice to the opposite party that it has issued, two clear days before the day fixed for the trial of the action or matter to which it shall relate, the judge may, in his discretion, order the party who obtained the writ to pay all the costs of the day, or so much thereof as he shall think fit, unless the High Court, or a Judge thereof shall have made some order respecting such costs.

Section 133.—All actions of replevin which shall be brought in the court, shall be brought by plaint, and in every such action the plaint shall be entered in the court of the district where the goods were seized.

THE COUNTY COURTS ACT, 1919 (9 & 10 GEO. 5. C. 73).

Section 5.—(2) Where a defendant gives notice in the prescribed manner that he admits his liability for the whole or any part of a claim, but desires the decision of the court as to the time and mode of payment thereof and offers to pay the same, the registrar shall, subject to county court rules, on such notice to the plaintiff as may be prescribed, and unless, where the defendant admits less than the full amount claimed, the plaintiff objects in the prescribed manner to accept the amount admitted and the offer of payment in satisfaction of his claim, have power to enter up judgment and, for this purpose, to decide any question as to time and mode of payment.

(3) Where the plaintiff and defendant enter into an agreement in the prescribed manner as to the amount payable in respect of the whole or any part of a claim and the terms and conditions upon which the same is to be paid and satisfied, the registrar shall, subject to county court rules, have power to enter up judgment for the amount so agreed upon and for a payment thereof upon the terms and conditions sanctioned in the agreement.

(4) In any case where the registrar has power under the principal Act or this Act to hear and determine a case or to enter up judgment he shall have power to make such order as to payment by instalments as the judge might have made, and to exercise any other power which the judge might have exercised,

and, subject to the provisions of this Act with respect to appeals, any judgment entered up by the registrar in pursuance of the principal Act or this Act shall, to all intents and purposes, have the same effect and shall be enforced and enforceable in the same manner as if it had been a judgment of the judge of the same court.

3RD SCH.
—cont.

Section 7.—Any judgment or order of a registrar, and any execution thereof (except where all parties have consented to the terms of the judgment or order), may, on application made within such time and in such manner as may be prescribed, be set aside by the judge of the county court, and the judge may give such judgment or make such order in substitution therefor as he thinks fit, or may grant a new trial on such terms (if any) as he may think fit.

Section 8.—The following section shall be substituted for section eighty-six of the principal Act :—

“(1) County Court rules may provide for the issue, under the prescribed conditions, of a default summons, in the prescribed form or to the prescribed effect, in any action for a debt or liquidated demand in money, and may provide for the manner in which such a summons is to be served and the conditions (if any) under which the defendant is to be entitled to defend the action; and, where such conditions are not complied with, it shall be lawful for the registrar to enter up judgment summarily for the plaintiff in manner prescribed by the rules.

“(2) The rules may provide for different procedure and different conditions according to the amount of the claim or the nature thereof or the position or occupation of the defendant, for the exclusion of any actions from the procedure by default summons, and for the amendments to be allowed in the case of a default summons, and the procedure consequent on any such amendment.”

Section 10.—(1) Where an action or matter is commenced in a county court, which ought to have been commenced in some other county court, the judge may, if he thinks fit, and upon such terms as to costs and otherwise as he thinks fit, instead of ordering it to be struck out in accordance with section one hundred and fourteen of the principal Act, either transfer the action or matter to the county court in which it ought to have been commenced or proceed to hear and determine the case in the court in which it was commenced, and in the latter case that court shall have jurisdiction in like manner as if it had been the court in which the action or matter ought to have commenced.

(2) Where an action or matter is transferred from one county court to another under this section, the provisions of

3RD SCH.
—cont.

section eighty-five of the principal Act relating to procedure on transfer and to the trial or hearing of a transferred action or matter shall apply in like manner as if the action or matter had been transferred under that section.

Section 13.—Section twenty-one of the County Courts Admiralty Jurisdiction Act, 1868 (which prescribes the county courts in which admiralty proceedings are to be commenced), shall cease to have effect, and provision may be made by county court rules as to the courts in which proceedings may be commenced in cases which by virtue of that Act, or any Act amending that Act, may be brought in a county court.

Section 24.—(2) The power of making rules under section one hundred and sixty-four of the principal Act shall extend to making rules—

(a) for carrying this Act into effect :

(b) for requiring each party in any action where the debt demand, or damage claimed or counterclaimed exceeds twenty pounds, or such greater amount as may be provided by the rules, to state the nature of his claim or defence in writing in sufficient time before the trial in the form of particulars or otherwise ;

and the provisions of the principal Act as to the procedure and practice in actions in the county court shall have effect subject to such modifications therein as may be made by any rules made in pursuance of the powers given by this section.

THE COUNTY COURTS ACT, 1924 (14 & 15 GEO. 5. c. 17).

Section 8.—A registrar on the application of the defendant, of the hearing of which application seven clear days' notice shall be given by the defendant to the plaintiff, may order a plaint or other proceeding to be struck out on the ground that it discloses no reasonable cause of action, and shall make such order as to costs as he may think proper.

From the decision of the registrar an appeal shall lie to the county court judge in chambers.

THE SETTLED LAND ACT, 1925 (15 & 16 GEO. 5. c. 18).

Section 113 (3).—The powers of the court . . . [which are exercisable by a county court] shall be exercised by any county court within the district whereof is situate any part of the land which is to be dealt with in the court or from which the capital money to be dealt with in the court arises under this Act or in connection with which the personal chattels to be dealt with in the court are settled.

FOURTH SCHEDULE.

PART I.

Section 189.

TRANSITIONAL PROVISIONS.

MODIFICATIONS OF ACT IN THE CASE OF COURTS WHERE
THE OFFICES OF HIGH BAILIFF AND REGISTRAR ARE
HELD BY DIFFERENT PERSONS.

1. The following provisions shall have effect as if references to the registrar included references to the high bailiff, that is to say,—

Subsections (1) and (3) of section nineteen, subsection (1) of section twenty, subsections (1) and (2) and paragraph (a) of subsection (5) of section twenty-four, and subsection (1) of section one hundred and seventy-one.

2. The following provisions shall have effect as if references to the high bailiff were substituted for references to the registrar, that is to say,—

Subsection (2) of section twenty-eight, section one hundred and twenty-two, section one hundred and twenty-three, section one hundred and twenty-seven, section one hundred and twenty-nine, section one hundred and thirty, subsections (2) and (3) of section one hundred and thirty-one, subsections (3) and (4) of section one hundred and thirty-three, subsection (7) of section one hundred and thirty-four, subsection (1) of section one hundred and forty, and section one hundred and forty-four.

3. The proviso to subsection (1) of section twenty-eight shall have effect as if the words “or high bailiff” were inserted after the word “registrar” where that word first occurs.

4. Subsection (2) of section thirty-six shall have effect as if the words “or in his unavoidable absence the high bailiff” were inserted after the word “enactment.”

5. Subsection (2) of section one hundred and sixteen shall have effect as if the words “to the high bailiff” were inserted after the word “issue,” and as if the words “high bailiff” were substituted for the word “registrar” where that word secondly occurs.

6. Subsection (1) of section one hundred and thirty-three shall have effect as if the words “on the application of the high bailiff” were inserted after the word “registrar.”

4TH SCH.
—cont.

7. Section one hundred and thirty-five shall have effect as if in subsection (1) thereof the words "high bailiff" were substituted for the word "registrar" where that word first occurs, and as if in subsection (2) thereof the words "issue it to the high bailiff of that other county court and thereupon that high bailiff" were inserted after the words "county court shall," and the words "high bailiff" were substituted for the word "registrar" in the second and third places where that word occurs and as if in subsection (3) thereof the words "high bailiff" were substituted for the word "registrar" where that word first occurs.

8. Section one hundred and forty-three shall have effect as if in subsection (1) thereof the words "high bailiff" were substituted for the word "registrar" where that word first occurs, and as if in subsection (2) thereof the words "issue it to the high bailiff of that other court and thereupon that high bailiff" were inserted after the words "county court shall" and the words "high bailiff" were substituted for the word "registrar" in the second and third places where that word occurs, and as if in subsection (5) thereof the words "high bailiff" were substituted for the word "registrar" where that word first occurs.

9. Paragraph (d) of section one hundred and ninety-one shall have effect as if the words "and high bailiff" were inserted after the word "registrar," and paragraph (o) of that section shall have effect as if the words "high bailiff" were inserted after the word "registrar" where that word first occurs, and as if the words "deputy high bailiff" were inserted after the words "deputy registrar."

Section 190.

PART II.

PROVISION AS TO CERTAIN DEPUTY REGISTRARS.

Subsection (6) of section twenty-four of this Act shall apply to a deputy appointed in the case of the illness or unavoidable absence of a registrar—

- (a) to whom a salary had been assigned before the fourteenth day of July, nineteen hundred and twenty-four, under section forty-five of the County Courts Act, 1888; and
- (b) who gave notice in such form and within such period as was prescribed by order of the Lord Chancellor under paragraph (b) of subsection (3) of section four of the County Courts Act, 1924, of his desire to accept the provisions of that Act relating to retirement and pensions;

as it applies to a deputy appointed in the case of the illness or unavoidable absence of a whole-time registrar.

PART III.

4TH SCH.
—*cont.*

PROVISIONS AS TO PENDING PROCEEDINGS.

Section 190.

1. Nothing in—

- (a) sections forty-eight, forty-nine, one hundred and seventy-nine or one hundred and eighty of this Act; or
- (b) section six of the County Courts (Amendment) Act, 1934; or
- (c) the provisions of the County Courts (Amendment) Act, 1934, repealing sections one hundred and thirty-eight to one hundred and forty-five of the County Courts Act, 1888; or
- (d) the provisions of the County Courts (Amendment) Act, 1934, repealing certain words in sections fifty-nine and one hundred and twenty of the County Courts Act, 1888, and in section seven of the County Courts Act, 1924;

shall affect any proceedings commenced in a county court under section fifty-nine, one hundred and thirty-eight or one hundred and thirty-nine of the County Courts Act, 1888, before the date on which section six of the County Courts (Amendment) Act, 1934, came into operation, and in relation to any such proceedings, sections fifty-nine, one hundred and twenty, and one hundred and thirty-eight to one hundred and forty-five of the County Courts Act, 1888, as amended by any subsequent enactment other than section six of the County Courts (Amendment) Act, 1934, shall, notwithstanding anything in this Act, continue to have effect as they had effect immediately before the said date.

2. Nothing in section fifty-four of this Act shall affect any action or matter commenced in the High Court before section eight of the County Courts (Amendment) Act, 1934, came into operation.

3. Nothing in section fifty-eight of this Act shall affect any action commenced in the High Court before section sixteen of the County Courts (Amendment) Act, 1934, came into operation.

4. Nothing in sections sixty-three or seventy-one of this Act or in section eleven of the County Courts (Amendment) Act, 1934, or in the provisions of that Act repealing section two hundred and three of the Supreme Court of Judicature (Consolidation) Act, 1925, shall affect any proceedings commenced in a county court before the date on which section eleven of the County Courts (Amendment) Act, 1934, came into operation, and in relation to any such proceedings sections two hundred and two and two hundred and three of the Supreme Court of

4TH SCH. Judicature (Consolidation) Act, 1925, shall, notwithstanding any-
—cont. thing in this Act, continue to have effect as they had effect
immediately before the said date.

32 & 33 Vict.
c. 51. 5. Where in any proceedings pending in a county court at
the date on which section fourteen of the County Courts (Amend-
ment) Act, 1934, came into operation, any assessors had been
summoned before that date under sections ten, eleven, fourteen,
fifteen and sixteen of the County Courts Admiralty Jurisdiction
Act, 1868, or section five of the County Courts Admiralty Juris-
diction Amendment Act, 1869, they shall be deemed to have been
summoned under section eighty-eight of this Act.

15 & 16
Geo. 5. c. 28. 6. Nothing in section ninety-one of this Act or in section
seventeen of the County Courts (Amendment) Act, 1934, or in
the provisions of that Act repealing section nineteen of the
Administration of Justice Act, 1925, shall affect any proceedings
commenced in a county court before the date on which section
seventeen of the County Courts (Amendment) Act, 1934, came into
operation, and, in relation to any such proceedings, section three
of the Administration of Justice Act, 1920, and section nineteen
10 & 11
Geo. 5. c. 81. of the Administration of Justice Act, 1925, shall, notwithstanding
anything in this Act, continue to have effect as they had effect
immediately before the said date.

7. For the purpose of section ninety-two of this Act, a
notice requiring a jury to be summoned given to the registrar by a
party to any proceedings commenced in a county court before
the date on which section seventeen of the County Courts (Amend-
ment) Act, 1934, came into operation, shall be treated as if it
were an order of the court for the trial of those proceedings with
a jury.

8. Nothing in—

- (a) subsections (1) or (2) of section one hundred and six
of this Act; or
- (b) subsections (1) or (2) of section fifteen of the County
Courts (Amendment) Act, 1934; or
- (c) the provisions of the County Courts (Amendment)
Act, 1934, repealing sections twenty-six, twenty-seven,
twenty-eight, thirty and thirty-one of the County
Courts Admiralty Jurisdiction Act, 1868;

shall affect any proceedings commenced in a county court
before the date on which section fifteen of the County Courts
(Amendment) Act, 1934, came into operation, and in relation
to any such proceedings the sections aforesaid of the County
Courts Admiralty Jurisdiction Act, 1868, as amended by any
subsequent enactment other than the County Courts (Amend-
ment) Act, 1934, shall, notwithstanding anything in this Act,

continue to have effect as they had effect immediately before the said date.

4TH SCH.
—cont.

9. In relation to any appeal from a judgment, direction, decision or order of a judge of county courts given or made on or before such date as may have been appointed by the Lord Chancellor under subsection (1) of section two of the Administration of Justice (Appeals) Act, 1934, sections one hundred and five, one hundred and six, one hundred and nine, and one hundred and ten of this Act shall have effect as if the words "High Court" were substituted for the words "Court of Appeal" wherever those words occur, except in the second and third places when they occur in subsection (3) of section one hundred and six.

24 & 25
Geo. 5. c. 40.

10. If section twenty-one of the County Courts (Amendment) Act, 1934, came into operation after the end of the month of February in any year, section one hundred and seventy-three of the County Courts Act, 1888, shall, notwithstanding anything in this Act, or in the County Courts (Amendment) Act, 1934, not cease to have effect until the first day of January next following the date on which the said section twenty-one came into operation.

11. Nothing in any provision of the County Courts (Amendment) Act, 1934, or in any provision of this Act re-enacting any provision of that Act, shall restrict the jurisdiction of a county court to hear and determine any proceedings commenced in the court before that provision of the County Courts (Amendment) Act, 1934, came into operation.

FIFTH SCHEDULE.

ENACTMENTS REPEALED.

Section 193.

Session and Chapter.	Short Title.	Extent of Repeal.
20 & 21 Vict. c. 77.	The Court of Probate Act, 1857.	Sections fifty-five, fifty-six, and fifty-seven.
31 & 32 Vict. c. 71.	The County Courts Admiralty Jurisdiction Act, 1868.	The whole Act.
32 & 33 Vict. c. 51.	The County Courts Admiralty Jurisdiction Amendment Act, 1869.	The whole Act.
33 & 34 Vict. c. 15.	The County Court (Buildings) Act, 1870.	The whole Act.

5TH SCH. —cont.	Session and Chapter.	Short Title.	Extent of Repeal.
	35 & 36 Vict. c. 51.	The Judges Salaries Act, 1872.	The whole Act in so far as it relates to judges of county courts.
	46 & 47 Vict. c. 52.	The Bankruptcy Act, 1893	Sections forty - two, one hundred and twenty-two, and one hundred and twenty - seven; section one hundred and forty- five in so far as it relates to sales by a high bailiff or other officer of a county court.
	51 & 52 Vict. c. 43.	The County Courts Act, 1888.	The whole Act.
	53 & 54 Vict. c. 71.	The Bankruptcy Act, 1890	Section twelve in so far as it relates to sales by a high bailiff or other officer of a county court, and section twenty-eight.
	3 Edw. 7. c. 42	The County Courts Act, 1903.	The whole Act.
	3 & 4 Geo. 5. c. 34.	The Bankruptcy and Deeds of Arrangement Act, 1913.	Section fifteen in so far as it relates to sales by a high bailiff or other officer of a county court, and section eighteen.
	9 & 10 Geo. 5. c. 70.	The County Court Judges (Retirement Pensions and Deputies) Act, 1919.	The whole Act.
	9 & 10 Geo. 5. c. 73.	The County Courts Act, 1919.	The whole Act.
	10 & 11 Geo. 5. c. cxxxiv.	The Mayor's and City of London Court Act, 1920.	Section nine.
	10 & 11 Geo. 5. c. 81.	The Administration of Justice Act, 1920.	Subsection (2) of section three and section fifteen in so far as they relate to county courts.
	14 & 15 Geo. 5. c. 17.	The County Courts Act, 1924.	Sections one and two; in subsection (1) of section three the words "in con- " nection with any court "such assistant registrars, " clerks, bailiffs, ushers " and messengers, and," the words "of the court or" and the word "respectively" in both places where that word

Session and Chapter.	Short Title.	Extent of Repeal.	5TH SCH. —cont.
14 & 15 Geo. 5. c. 17— <i>cont.</i>	The County Courts Act, 1924— <i>cont.</i>	occurs; subsections (2), (3), (4) and (5) of section three; subsections (3) and (4) of section four, and in subsection (5) the words “as they apply to registrars of county courts”; in subsection (5) of section five the words “a registrar, a high bailiff, or”; sections seven, eight and nine; in subsection (1) of section eleven the words from “and shall” to the end of the subsection; in subsection (2) of section eleven the definitions of “court,” “registrar,” “the principal Act,” “solicitor” and “prescribed,” and in the definition of “court service” the words “employment as an assistant registrar or as a clerk, bailiff, usher or messenger in the service of a court or,” and the words “and includes employment in those capacities simultaneously”; subsections (3) and (5) of section eleven; paragraph 4 of the First Schedule; and the Second and Third Schedules.	
15 & 16 Geo. 5 c. 28.	The Administration of Justice Act, 1925.	Section twenty.	
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act, 1925.	Paragraph (k) of subsection (1) of section thirty-one; paragraphs (a) (b) and (c) of subsection (1) of section thirty-three and subsection (3) of that section; in section one hundred and fifty the words from “Provided that”	

5TH SCH. —cont.	Session and Chapter.	Short Title.	Extent of Repeal.
	15 & 16 Geo.5. c. 49—cont.	The Supreme Court of Judicature (Consolida- tion) Act, 1925—cont.	to the end of the sec- tion; section two hun- dred and two in so far as it relates to county courts; sections two hundred and four and two hundred and five.
	18 & 19 Geo.5. c. 26.	The Administration of Justice Act, 1928.	Sections seventeen and eighteen; subsection (2) of section nineteen, and Part II of the First Schedule.
	23 & 24 Geo. 5. c. 36.	The Administration of Justice (Miscellaneous Provisions) Act, 1933.	Subsections (2), (3) and (4) of section four.
	24 & 25 Geo. 5. c. 17.	The County Courts (Am- endment) Act, 1934.	The whole Act.
	24 & 25 Geo. 5. c. 40.	The Administration of Justice (Appeals) Act, 1934.	In subsection (1) of section two the words "Part I of", the words "and the "enactments set out in "the first column of Part "II of the said Sche- "dule" and the words "of those Parts"; sub- section (2) of section two; Part I of the Schedule in so far as it relates to section twenty-six of the County Courts Admiralty Jurisdiction Act, 1868, to section one hundred and twenty of the County Courts Act, 1888, and to section fifteen of the County Courts (Amend- ment) Act, 1934; and Parts II and III of the Schedule.

